

The Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985

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State of Madhya Pradesh - Act

The Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985

MADHYA PRADESH

India

The Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985

Rule THE-NARCOTIC-DRUGS-AND-PSYCHOTROPIC-SUBSTANCES-MADHYA-PRADESH-RULES-1985 of 1985

Published on 11 November 1985

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The Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985

Published vide Notification No. B-6-36-5-SR:85-4813, dated 11-11-1985, M.P. Rajpatra, Extraordinary, dated 14-11-1985

In exercise of the powers conferred by Sections 8, 10, 65, 71 and 78 of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985), the State Government hereby makes the following rules, namely :-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985.

(2)

They shall come into force with effect from 14th November, 1985.

2.

Definitions.

- In these rules, unless the context otherwise requires :-

(a)

"Act" means Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985);

(b)

"Approval Medical Practitioners" means-

(i)

any Graduate in Medicine, Surgery or Dentistry of recognised University in India, Europe or United Kingdom, U.S.A.; or

(ii)

any person registered as a medical practitioner under any law for the time being in force in any part of India; or

(iii)

any person who holds a certificate or Diploma not inferior to that of a Graduate of such veterinary college or institute as may be recognised in this behalf by a general or special order of the State Government; or

(iv)

any other person engaged in medical or veterinary practice and approved by the Excise Commissioner.

(c)

"Collector" means the Chief Officer in charge of the revenue administration of a district for the time being, and includes any officer specially authorised by the State Government to exercise throughout the State of Madhya Pradesh or any specified area therein all or any of the powers of the Excise Commissioner Madhya Pradesh under these rules;

(d)

"Excise Commissioner" means the Excise Commissioner, Madhya Pradesh and includes any officer specially authorised by the State Government under the Madhya Pradesh Excise Act, 1915 (No. II of 1915) to exercise throughout the State of Madhya Pradesh or any specified area therein all or any of the powers of the Excise Commissioner under these rules;

(e)

"Excise Officer" means an Excise Officer appointed under the Madhya Pradesh Excise Act, 1915 (No. II of 1915) not below (he rank of "Head Constable";

(f)

"Form" means a form appended to these rules;

(g)

"Licence" means a licence granted under these rules;

(h)

"Licensed vendor" means a person holding a licence in Form N.D. I or in Form O.P. 1 under these rules for the possession and sale of Coca Leaf and manufactured drugs other than prepared opium otherwise than on the prescription of an approved medical practitioner;

(i)

"Licensed Druggist" means a person holding a licence in Form N.D. II or in Form O.P. 2 under these rules for the possession and sale on prescription of an approved medical practitioner of manufactured Drugs and Coca leaf other than prepared opium;

(j)

"Medical Authority" means a Government Medical Officer, or Government Assistant Medical Officer in the District or Tehsil or if there is no such officer in the District or Tehsil the nearest Government Medical Officer or Assistant Medical Officer of a Government Hospital or Dispensary nearest to the place where the person concerned resides;

(k)

(i)

"Pass" means a pass granted under these rules;

(ii)

"Permit" means a permit granted under these rules;

(iii)

"Permit Holder" means holder of a permit;

(l)

"Ware House" means a place established or licensed as a ware house by the State Government under clause (a) of sub-section (2) of Section 10 of the Act, and also a place so established or licensed as a ware house by the Excise Commissioner of Madhya Pradesh under clause (d) of Section 14 of the Madhya Pradesh Excise Act, 1915 (No. II of 1915);.

(m)

the words and expressions used in these rules but not defined therein shall have the meanings respectively assigned to them in the Act.

Chapter II

Opium Rules

3.

Licence to Medical Practitioner.

(1)

Any approved medical practitioner desiring to possess and sell medicines containing opium on prescription shall make an application to the Collector for a licence in that behalf.

(2)

On receipt of an application under sub-rule (1) the Collector shall make such inquiries as he deems necessary and if he is satisfied that there is no objection to grant the licence applied for he may grant the applicant a licence in Form O.P. 1 on payment of a fee of Registration.

4.

Licence to Druggist.

(1)

Any druggist desiring to possess and sell preparations containing opium as defined in clause (XV) of Section 2 of the Act shall make an application to the Collector for a licence in that behalf.

(2)

On receipt of an application under sub-rule (1) the Collector shall make such enquiries as he deems necessary and if he is satisfied that there is no objection to grant the licence applied for he may grant the applicant licence in Form O.P. 2 on payment of a fee of Rupees Ten.

5.

Permit to person addicted.

(1)

Any person addicted to consuming opium and requiring opium for medical purposes shall make an application to the Collector or any other Officer authorised by him in this behalf for registration of his name stating the following particulars, namely :-

(a)

Name of the Applicant with his/her father's/husband's name;

(b)

Caste, age and occupation of the applicant;

(c)

Residential address of the applicant;

(d)

Period for which the applicant has been using or consuming opium and the source from which opium in the past was obtained;

(e)

For what ailment, etc. the applicant was consuming Opium;

(f)

Ware house, Treasury or sub-treasury from which the applicant desires to have supply of opium;

(g)

Quantity of opium required for a month's consumption.

(2)

On receipt of an application the Collector or authorised officer shall make such enquiries as he deems necessary and if he is satisfied that there is no objection to register the name of the applicant he shall register his name in the Register of Opium Addicts, to be maintained in Form O.P. 3. The applicant shall then be directed to approach the Medical Authority to obtain the permit.

(3)

The medical authority shall examine the applicant directed to it for obtaining the permit by the Collector or the authorised officer.

(4)

The medical authority shall after examining the applicant and after taking into consideration the age, weight, general health. Medical history, illness, disease, symptoms, disorder and period of addiction to the use of opium and any such measure as it deems fit for weaning the addict or relieving his pain in case of disease, record its opinion as to whether the applicant is required to use or consume opium and grant a permit to the applicant in Form O.P. 4 on payment of a fee of Rupees Two.

(5)

A permit in Form O.P. 4 shall be granted in respect of such quantity of opium as may be fixed by the medical authority. The aggregate quantity that can be brought in a month shall not exceed 5 Grams of opium and this quantity shall automatically be reduced by ? every quarter subject to the minimum of ? Grams every three months :

Provided that a permit shall not be granted to any person for a quantity of opium greater than that which he was getting under his permit, registration card or ration card, if any immediately prior to the date of the commencement of these rules or where no such permit registration card or ration card was necessary for the possession of opium for personal consumption or use for a quantity greater than that which he was in the opinion of the Medical Authority consuming immediately prior to the date of the commencement of these rules;

Provided further that where the Medical Authority feels that a restoration or increase in the aggregate to the quantity that can be brought in a month is necessary the case shall be referred to a Medical Board constituted for the purpose by the State Government.

(6)

No fee shall be charged by the Medical Authority for examining the applicant.

(7)

The Excise Officer shall be authorised to make surprise check of the quantity of opium issued to and possessed by the individual permit holder so as to prevent misuse of the supplies made to him. The permit holder shall produce, on demand, by any Excise Officer the permit and all the stock of opium in his possession and afford all facilities required for such check.

6.

Renewal of Licence or Permit.

(1)

A licence or permit once granted and not suspended or cancelled under these rules may on an application be renewed by the Collector or Medical Authority as the case may be on payment of a Fee of rupees ten or one respectively. An application for renewal of such licence or permit shall be made before the 15th March, every year.

(2)

If a licence or permit is defaced or lost or destroyed the Collector or the Medical Authority, as the case may be, after making such enquiry as he or it deems necessary', issue a duplicate licence or permit on payment of fee of Re. one.

7.

Import inter-State, Export inter-State or transport.

(1)

Subject to the provisions of sub-rule (2) no person shall import Inter-State/export Inter-State or transport opium except under a pass in Form O.P. 5 granted by the Excise Commissioner.

(2)

No approved Medical Practitioner holding a licence in Form O.P. 1 or licensed druggist shall import Inter-State or Transport preparations containing opium except for Medical purposes and in such quantities as he is authorised to

possess, under a Pass in Form O.P. 5 to be granted by the Collector.

8.

Transmission by post.

(1)

Except as provided in sub-rule (2) no opium shall be imported or transported by post into or within Madhya Pradesh.

(2)

A licensed druggist or an approved Medical Practitioner holding a Licence in Form O.P. 1 may import or transport preparations containing opium by inland post subject to the following conditions,-

(a)

Only the parcel post shall be used;

(b)

The parcel shall be insured;

(c)

The parcel shall be covered by a pass in Form O.P. 5 granted by an officer duly authorised;

(d)

The parcel shall be accompanied by a declaration stating the name of the consignee and consignor, the contents of the parcel in detail, the number and date of the pass covering the transmission, the number and date of the licences held by the consignee and consignor, and such other particulars as may be required from time to time by the Excise Commissioner;

(e)

The consignee shall show distinctly in his account books the name of the consignor and the quantity of drugs sent to him from time to time by post.

9.

Sale.

- Opium shall not be sold at any place except at a Government ware-house, Treasury or sub-treasury of the State of Madhya Pradesh :

Provided that an approved medical practitioner or a druggist holding a licence in Form O.P. 1 or O.P. 2 may sell medicines containing opium or preparations containing opium to the extent and subject to the conditions laid down in his licence.

10.

Supplementary directions by the Excise Commissioner.

- Subject to the provisions of the Act and these rules the Excise Commissioner may from time to time give such directions and prescribe such returns and register, as he may think fit for the purposes of carrying out the provisions of these rules.

11.

Exemptions granted to Government Servants.

- Government Servants, when acting on behalf of the Government and in the course of their duties as such are exempted from the provisions regarding the import inter-state export inter-state, transport, possession and sale of opium or its transmission by inland post.

12.

Exemption granted to Hospitals and Dispensaries.

- The following hospitals and dispensaries are exempted from the provisions regarding possession and sale of opium as defined in Section 2 of the Act, in so far as 'Sale' consists in taking payment for medicines issued in accordance with the rules prescribed for the hospitals or dispensaries, concerned :-

(a)

Hospitals, dispensaries and veterinary dispensaries working under supervision of the State or Central Government and subsidized dispensaries, and hospitals in Madhya Pradesh;

(b)

Other medical institutions specially authorised by the Excise Commissioner in this behalf.

Disposal of Articles and Things Confiscated

13.

All articles or things confiscated to be delivered to the District Excise Officer.

(1)

All articles or things confiscated under the Act shall be delivered to the District Excise Officer of the District in which the order of confiscation is passed.

(2)

Disposal of opium. - If the thing confiscated be opium, it shall be disposed of in such manner as the Excise Commissioner or any officer authorised by him in this behalf, may from time to time direct.

(3)

Disposal of oilier articles and things. - All other articles and things confiscated shall be destroyed or sold by public auction and the sale proceeds credited to Government.

14.

Disposal to be deferred till period of appeal.

- The sale or other disposal of any thing or any animal confiscated under the Act shall be deferred until the period of appeal against the order of confiscation has expired or if an appeal be made against such order, until such appeal has been decided :

Provided that any perishable thing or any animal may be disposed of immediately.

15.

Reward to be paid to officers and informers.

(1)

The following scale of rewards for seizure of opium is prescribed :-

(a)

For Informers

(i)

On first 10 Kg. of opium

up to Rs. 40 per Kg

(ii)

On next 30 Kg. of opium

up to Rs. 30 per Kg

(iii)

On excess of 40 Kg. of opium

up to Rs. 20 per Kg

(b)

For Officers

(i)

On first 20 Kg. of opium

Non-information cases up to Rs. 40 per Kg.

Information cases up to Rs. 30 per Kg.

(ii)

On excess of 20 Kgs. of opium

Up to Rs. 30 per Kg.

Up to Rs. 20 per Kg.

(2)

The following officers may grant rewards mentioned in sub-rule (1) above up to the limits against them :-

(i)

District Excise Officer

Up to Rs. 100 in each case.

(ii)

Collectors

Up to Rs. 500 in each case.

(iii)

Divisional Assistant Commissioner of Excise

Up to Rs. 300 in each case.

(iv)

Divisional Deputy Commissioner of Excise

Up to Rs. 500 in each case.

(v)

Excise Commissioner

Up to Rs. 2000 in each case.

(vi)

The State Government

Above Rs. 2000 in each case.

(3)

The shares of an individual officer shall not be more than rupees 250.

Chapter III

Narcotic Drugs Rules

16.

Manufacture.

- A Licensed vendor or licensed druggist may, subject to the conditions of his licence, manufacture medicinal opium or any preparation containing morphine, diacetyl-morphine or cocaine from materials which he is lawfully entitled to possess.

17.

Manufactured by approved medical practitioners and Government officers exempted.

- Approved medical practitioners in the exercise of their profession and officers of Government, who in the course of their official duty or for the purposes of such duty, are required to manufacture medicinal opium or any preparation containing morphine, diacetyl-morphine or cocaine shall be exempted from the provisions contained in these rules regarding manufacture.

Possession

18.

Possession by private person.

- Any person may possess such quantity of manufactured drugs other than prepared opium as has been at one time dispensed and sold for his use on the prescription of an approved medical practitioner :

Provided that the prescription is in writing, elated and signed by an approved medical practitioner with his full name and address, states the exact quantity of each manufactured drug, gives the full name and address of the person for whose use it is given, and is in the possession of such person or his guardian a person duly authorised on his behalf.

19.

Possession by approved medical practitioner.

- An approved medical practitioner may possess for his use, in the exercise of his profession, manufactured drugs other than prepared opium in quantities not exceeding in the aggregate those specified below :-

Description of Drugs

Quantity

(1)

(2)

(i)

Cocaine

14,175 Mgs.

(ii)

Medicinal hemp

2,83,500 Mgs.

(iii)

Medicinal Opium

2,83,500 Mgs.

(iv)

Morphine, diacetyl-morphine and admixtures of alkaloids of these drugs.

7,700 Mgs. of pure drugs or 2,26,800 Mgs. of these drugs in all forms of admixture of alkaloids.

(v)

Pethidine Hydrochloride

72,00 Mgs.

Provided that the Collector may, by special order, authorise any such practitioner to possess as aforesaid any larger quantity.

20.

Possession by licensed vendor or licensed druggist.

- A licensed vendor or licensed druggist may possess such quantity of coca leaf and manufactured drugs other than prepared opium and in such manner as may be specified in his licence.

21.

Exemption.

- The following institutions shall be exempted from the provisions contained in these rules regarding the possession of coca leaf and manufactured drugs [other than prepared opium and morphine]

[Substituted by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999.]

;-

(i)

Hospitals, dispensaries and veterinary dispensaries working under Government supervision subsidized dispensaries and railway hospitals and dispensaries;

(ii)

Other medical institutions authorised by the Excise Commissioner in this behalf by a general or special order subject to such conditions as may be specified in the order :

Provided that such articles have been obtained under a duly granted import or transport licence.

22.

Import by private persons.

- Any person may import inter-state such manufactured drugs other than prepared opium as he may lawfully possess under Rule 18.

23.

Import by others.

(1)

In the following cases coca Leaf and manufactured drugs other than prepared opium may be imported from other State only under a licence to be obtained for each consignment separately from the following authorities :-

Cases in which licence may be granted

Authority granting the licence

(1)

(2)

(i)

For supplies required for hospitals, dispensaries and veterinary dispensaries working under Government supervision, subsidized dispensaries and railway hospitals and dispensaries.

The indent shall be counter-signed by the Director of Health Services, Director of Veterinary Services, District Surgeon of the Railway Administration concerned as the case may be. This indent shall be regarded as a licence.

(ii)

Other medical institutions specially authorised by the Excise Commissioner

The indent shall be counter-signed by the Civil Surgeon of the district and such indent shall be regarded as a licence.

(iii)

In all other cases

The Collector of the District. The licence shall be in Form N.D. 3.

[Provided that the import of morphine by the medical institutions specified in clauses (i) and (ii) shall be regulated by Rule 47-H.]

[Added by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999.]

(2)

The importer shall give intimation of the arrival of the consignment to the District Excise Officer and present the consignment to him or to an officer deputed by him for examination together with the import licence received by the importer.

(3)

The Collector shall send the copy of the import licence received by him to the District Excise Officer who shall personally or through an officer subordinate to him check the consignment and see that it tallies with the import certificate granted.

24.

Import subject to restrictions specified in the import licence.

- A person to whom a licence has been granted under these rules for the import of coca leaf and manufactured drugs other than prepared opium shall import only such quantity and in such manner as may be specified in his licence.

25.

Export.

- To Export Inter-State coca leaf and manufactured drugs other than prepared opium, may be permitted by the Excise Commissioner under a licence in Form N.D. 3, such licence shall not be granted except on the production of an import licence, issued by an officer duly authorised in that behalf by the Government of the importing State.

26.

Transit.

- A licence in Form N.D. 3 for the transit of coca leaf and manufactured drugs other than prepared opium consigned to any other State through Madhya Pradesh may be granted by the Excise Commissioner on application by the Chief Excise authority of that State. The articles shall be carried in sealed packages and shall not be opened en route.

27.

Transport.

- A licence for the transport of coca leaf and manufactured drugs other than prepared opium within the limit of possession authorised may be granted by the following authorities :-

Cases in which licence may be granted

Authority granting the licence

(1)

(2)

(i)

For supplies required for hospitals, dispensaries and veterinary dispensaries working under Government supervision, subsidized dispensaries and railway hospitals and dispensaries.

The indent shall be counter-signed by the Director of Health Services, Director of Veterinary Services, District Surgeon of the Railway Administration concerned as the case may be. This indent shall be regarded as a licence.

(ii)

Other medical institutions specially authorised by the Excise Commissioner

The indent shall be counter-signed by the Civil Surgeon of the district and such indent shall be regarded as a licence.

(iii)

In all other cases

The Collector of the District. The licence shall be in Form N.D. 3.

[Provided that transport of morphine by the medical institutions specified in clauses (i) and (ii) shall be regulated by Rule 47-H.]

[Added by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999.]

28.

Transmission by post.

- Import Inter-state Export Inter-state or transport of coca leaf and manufactured drugs other than prepared opium by inland post is prohibited, except by licensed druggist and licensed vendors and shall be subject to the following conditions :-

(i)

Only the parcel post shall be used.

(ii)

The parcel shall be insured.

(iii)

The parcel shall be covered by licence granted by officers duly authorised.

(iv)

The parcel shall be accompanied by a declaration stating the names of the consignee and consignor the contents of the parcel in detail, the number and date of the licence covering the transmission the number and date of the licence held by the consignee and consignor and such other particulars as may be required, from time to time, by the Excise Commissioner; and

(v)

The consignee shall show, distinctly in his account books the name of the consignor and the quantity of articles sent to him from time to time by post.

29.

Licence of sale.

(1)

The sale of coca leaf or any manufactured drugs other than prepared opium is prohibited except by a licensed vendor or a licensed druggist to whom a licence in Form N.D. 1 or N.D. Irrespectively, for the sale of the same has been granted by the Collector :-

Licence for the Sale of

Quantity allowed and licence fee payable for

Druggist/s Licence

Vendor/s Licence

Quantity

Rs.

Quantity

Rs.

(1)

(2)

(3)

(4)

(5)

(i)

Coca derivatives and cocaleaf

28,353 mgs.

10.00

56,700 mgs.

5.00

(ii)

Medicinal Hemp-

(a) Extract of hemp

4,25,250 mgs.

2.00

56,700 mgs.

1.00

(b) Tincture of hemp

4,252,500 mgs.

2.00

5,67,000 mgs.

1.00

(iii)

Medicinal opium or

4,25,250 mgs.

10.00

5,67,000 mgs.

5.00

Tincture opium

4,252,250 mgs.

10.00

5,670,000 mgs.

5.00

(iv)

Morphine diacetyl-morphine or official or non-official preparations containing more than 0.2 per cent of morphine or containing any diacetyl-morphine

15,440 mgs. of pure drugs or 226,800 mgs. of these drugs in all forms of admixtures of alkaloids.

10.00

15,400 mgs. of pure drugs or 226,800 mgs. of these drugs in all forms of admixtures of alkaloids.

5.00

(V)

Pethidine Hydrochloride

144,000 mgs.

10.00

144,000 mgs.

-

Note. - In special cases the Collector may allow a larger quantity of" any drug.

30.

Sale by a licensed vendor.

- A licensed vendor may subject to the conditions of his licence sell only to the following persons :-

(a)

A vendor or druggist licensed under these rules or under the rules for the time being in force in any part of India; or

(b)

an approved medical practitioner; or

(c)

[A medical institution exempted under Rule 21 but the sale of morphine shall be effected to such medical institution only which is recognised for the purpose under Rule 47-C" of Chapter IV-A.]

[Substituted by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999]

Such cocaleaf of manufactured drugs other than prepared opium and in such quantities as such vendor druggist, practitioner or medical institution may lawfully possess. He shall maintain a written record of every such sale in such manner as the Excise Commissioner may direct.

31.

Sale by a licensed druggist.

- A licensed druggist may subject to the conditions of the licence, sell only on prescription of approved medical practitioners such coca leaf or manufactured drugs other than prepared opium as may have been allowed in his licence. He shall maintain a written record of every such sale as laid down in his licence and as ordered by the Excise Commissioner from time to time.

32.

Exemption.

(1)

The medical institution exempted under Rule 21 of these rules shall also be exempted from the provisions regarding the sale of manufactured drugs [other than prepared opium and morphine]

[Substituted by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999]

in so far as the sale consists in taking payment for medicines issued in accordance with the rules prescribed for the hospital or dispensary :

[Provided that such medical institution shall maintain a true and correct account of the manufactured drugs other than the prepared opium and morphine.]

[Substituted by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999]

(2)

Subject to the provisions of sub-rule (3) an approved medical practitioner usually dispensing medicines to his patients in the exercise of his profession shall be exempted from the provision regarding the sale of manufactured drugs other than prepared opium in so far as the sale consists in taking payment for medicines issued or medical treatment given to bona fide patients :

Provided that this exemption shall only apply to a dispensary owned by an approved medical practitioner where no prescriptions except his own are dispensed;

Provided further that the approved medical practitioner shall :-

(i)

get himself registered with the collector or District Excise Officer;

(ii)

maintain register in Form N.D. 5 alongwith patients card in Form N.D. 6 accounting for the manufactured drugs in stock, received and used;

(iii)

file and preserve for not less than two years all the prescriptions so dispensed at the dispensary;

(iv)

produce the prescription alongwith his stock and permits and invoices of supplies obtained on the demand of any officer not below the rank of Sub-Inspector of Excise; and

(v)

furnish such returns and information in regard to dealings in Narcotic drugs as may be required by the Collector or the District Excise Officer.

(3)

The exemption under sub-rule (2) may be withdrawn by the Excise Commissioner if there is any breach of the conditions given in that sub-rule or if he is satisfied, after such enquiry as he deems proper, that Narcotic drugs are supplied otherwise than for bona fide medical treatment.

33.

Additional account returns to be maintained by others.

- The importer of manufactured drugs, the manufacturer of drugs, and the Chemist and Druggist shall maintain the

registers of accounts, returns etc. in forms N.D. 7, N.D. 8 and N.D. 9 respectively.

34.

Stock of drugs to be made over to Collector on expiration, cancellation or suspension of a licence or order.

- On the expiration, cancellation or suspension of any licence granted or any order passed under these rules, the holder thereof shall forthwith make over the Collector all manufactured drugs and coca leaf in his possession and shall, with the prior sanction of the Collector, dispose of these drugs to any other person authorised to possess them under these rules or under rules for the time being in force in any part of India within two calendar months from the date of such expiration, cancellation or suspension of the licence or order. If the Collector so directs, the drugs made over to him as aforesaid shall be sealed by an officer appointed by him in that behalf and shall be kept in the custody of the holder until they are disposed of.

35.

Disposal of drugs deposited on cancellation of licence.

- The Collector shall, if necessary cause all coca leaf and manufactured drugs other than prepared opium delivered to him under Rule 34 to be examined by the Chemical examination or by such other officer as the Excise Commissioner may direct.

(2)

If any of the articles are certified by such officer to be fit for the use the Collector may allow them to be sold to any person authorised to possess them under these rules or under any rules for the time being in force in any part of India. The Collector may require any licensed vendor or druggist to purchase at such price as the Collector may direct any quantity of such articles not exceeding such quantity as the Collector may determine to be ordinarily saleable in two months.

(3)

If the articles are certified to be unfit for use the whole of the stock, or if the quantity is unreasonably large the excess may be destroyed under the order of the Collector. The person delivering the articles shall not be entitled to any compensation for any loss suffered in consequence of action taken under this rule.

36.

Provisions not to apply to certain substances.

- The provisions of these rules shall not apply to the importation, exportation, transportation, possession or sale of codeine, dionin and their respective salts, unless the quantity involved in any transaction or possession at any one time exceeds 450 grams.

37.

Supplementary directions by the Excise Commissioner.

- Subject to the provisions of the Act and these rules the Excise Commissioner may, from time to time, give such directions and prescribe such forms, returns and registers as he may think fit, for the purpose of carrying out the provisions of these rules.

[Chapter III]

[Inserted by Notification No. 1818-B-1-67-V-SR-85, dated 23-4-1986.]

A Poppy Straw Rules

37A.

Prohibition of Poppy straw.

- Save as provided in these rules the possession, transport, import inter-state, Export inter-State, Warehousing, sale, purchase, consumption and use of poppy straw is prohibited, except for medical or scientific purposes in the manner and to the extent provided by the provisions of the Act and the rules and orders made there under and also in accordance with the terms and conditions of the licence, or permit granted or authorisation made under the provisions of this Chapter.

[Proviso... Omitted]

[Omitted by Notification No. (36)-B-1-1-05-2-V, dated 11-10-2007.]

37B.

Depots for sale of poppy straw.

- Depots for the sale of poppy straw shall be established at such places as the Excise Commissioner, may from time to time direct. Poppy straw required for sale at a depot may be obtained from such place or places as the Excise

Commissioner may direct.

37C.

Declaration by cultivator of opium poppy.

- The cultivator licensed under Section 9 of the Act shall in each financial year submitted by the 1st April to the District Excise Officer of the area a true declaration in Form P.S. I, in respect of the land in which he cultivated the opium poppy and of the stocks of Poppy straw directly relatable to the crop produced by him and shall also declare every building or place used or to be used by him for storing the poppy straw.

37D.

[Sale of poppy straw.

[Substituted by Notification No. (34)-B-1-58-96-CTD-V, dated 29-8-1996.]

- (i) No person shall sell poppy straw except under a wholesale licence granted in Form P.S. II and P.S. II-A or a retail sale licence in Form P.S. III for Medical or Scientific purposes.

(ii)

[Omitted]

(iii)

Notwithstanding anything contained in sub-rule (1) and (2) a cultivator licensed under rules framed under Section 9 of the Act may, during the period from the [1st April to 30th of September]

[Substituted by Notification No. (22)-B-1-36-2002-CT-V, dated 19-8-2002 for '1st April to 31st of July'.]

, without licence, possess and/or sell poppy straw directly relatable to the crop produced by him to a person holding licence in Form P.S. II [in the district in which his cultivated area is situated]

[Substituted by Notification No. (14) B-1-95-98-CTV, dated 26-3-1999.]

or destroy by burning within the said period the poppy straw in his possession] :

[Provided that for the year 2005-2006 this period shall be from 1st April 2005 to 31st October 2006 only for Mandsour District.]

[Inserted by Notification No. (16)-B-1-69-2005-2-V, dated 13-3-2006.]

37E.

Licensing authority and licence fee.

- [(1) Licences in Form P.S. II and P.S. III shall be granted by auction or tender or on fixed annual licence fee for the financial year or a part thereof by the Collector for the area within his jurisdiction, subject to the terms and conditions issued by the Excise Commissioner.] [[Substituted by Notification No. (10)-B-1-4-2002-CTD-(V), dated 23-4-2002. Prior to substitution it was as under :

'(1) Licences in Form P.S. II and Form P.S. III shall be granted by auction or tender by the Collector for the area within his jurisdiction, subject to the terms and conditions approved by the Excise Commissioner.']]

(2)

[Licences in Form P.S. II-A shall be granted and renewed by the District Excise Officer on a payment of Rs. 5,000/- as licence fee for a year or part thereof.]

[Substituted by Notification (14) B 1 -95-98-CTV, dated 26-3-1999.]

(3)

No licence shall be granted to a person who-

(i)

is not a citizen of India;

(ii)

is below 21 years of age;

(iii)

is in the opinion of the licensing authority of bad character;

(iv)

is of unsound mind and stands as so declared by a competent Court;

(v)

is an applicant to be adjudged an insolvent or is an undischarged insolvent;

(vi)

has been convicted by a Court of law for any criminal offence involving moral turpitude; or

(vii)

is black listed by the State Excise Department.

37F.

Import inter-state.

- A licensee holding licence in Form P.S. II only may import inter-state poppy straw in accordance with a pass granted by the licensing authority, or any Officer duly authorised by him. [The pass for import inter-state shall be issued in Form IV after payment of import fee at the rate of rupees 10 per kilogram]

[Substituted by Notification No. (50) B-1-70-99-CTD-V, dated 15-10-1999.]

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37G.

Export inter-state.

(1)

No person other than a licensee holding a licence in Form P.S. II shall export inter-state poppy straw.

(2)

A licensee holding licence in Form P.S. II who intends to export inter-state poppy straw shall apply to the District Excise Officer for an export inter-state pass.

Such application shall be accompanied by valid import pass or "No Objection Certificate" issued to such licensee by the Excise authority of the inter-State importing state and it shall be certified by it that the poppy straw so imported shall be used for medical or scientific purposes only.

(3)

On receipt of an application under sub-rule (2), the licensing authority or any officer authorised by it in this behalf may issue to the licensee an export inter-state pass in Form P.S. IV for the quantity mentioned in the import inter-state pass or No Objection Certificate produced by him under sub-rule (2) which shall accompany the consignment and it shall not be opened during transit.

[(3-a) No export pass in Form P.S. IV shall be issued unless the P.S. II licensee deposits export fee in advance at rate of Rs. 10/- per kilogram for the poppy straw being exported either in uncrushed or crushed/powered form.] [[Substituted by Notification No. (25)-B-1-1-05-2-V, dated 31-3-2000. In Chhattisgarh it is as under:

'(3-a) No export pass in Form P.S. IV shall be issued unless the P.S. II licensee deposits export fee in advance at the rate of Rs. 7.50 per kilogram in case the poppy-straw being exported is in powered or crushed form and at the rate of Rs. 5 per kilogram if it is not in powered/crushed form.']]

(4)

[xxx]

[Omitted by Notification No. (23)-B-1-19-2000-CTD-V, dated 30-3-2000.]

(5)

[Poppy straw, whether in Powered/Crushed form or otherwise, shall be exported by P.S. II licensee only in standard gunny bags each containing such quantity as may be specified by the excise Commissioner for this purpose.]

[Inserted by Notification No. (10)-B-1-127-99-CTD-V, dated 17-2 2000.]

[37H. Transport. - (1) Transport of poppy straw shall be carried out under the authority of a pass in Form P.S. V provided that an addict holding a permit in Form P.S. VII, or P.S. X or a person having permission of Excise Commissioner in accordance with sub-rule (3) of Rule 37-Q may transport poppy-straw to the extent mentioned in such permit or permission without a pass. Such a pass shall also not be required for transporting poppy-straw by a cultivator licensed under rules framed under Section 9 of the Act from the place of cultivation to the place of storage during the period from the first of April to 31st of July.

(2)

[Transport of poppy-straw from a P.S. II licensee to another P.S. II licensee may be permitted on payment of transport fee at the rate of Rs. 5.00 per kilogram, P.S. II licensee shall deposit a fee of Rs. 25/- to obtain a pass in form P.S. V in the district and transport poppy-straw from the cultivator of the district to the licensed premises.]

[Substituted by Notification No. (14)-B-1-95-98-CTV, dated 26-3-1999.]

(3)

[Transport of poppy straw from P.S. II licensee to P.S. III licensee shall be permitted on payment of duty at the rate of Rs. 10/- per Kilogram.] [[Substituted by Notification No. (25)-SU-1-05-2-V, dated 31-3-2006. In Chhattisgarh it is as

under :

'(3) Transport of poppy-straw from a P.S. II licensee to P.S. III licensee shall be on payment of duty fixed by the State Government from time to time.'])

(4)

Transport of poppy-straw to the licensed premises of a P.S. II licensee from additional godown (s) attached to it shall be on payment of a transport fee of Rs. 25 per pass irrespective of the quantity to be transported.

(5)

Duty or transport fee shall be deposited in the district wherein the licensed premises of the selling licensee is situated.

(6)

If the selling and purchasing licensees belong to different districts, a transport permit or pass in Form P.S. V shall be issued against the No objection certificate in Form P.S. V-A issued by the District Excise Officer of the purchasing district.]

(7)

[The transport of Poppy-straw, whether it is in Powered/Crushed form or otherwise, shall be permitted from P.S.-II licensee, only in standard gunny bags each containing such quantity as may be specified by the Excise Commissioner for this purpose. Transport of Crushed/Powered Poppy-straw from a P.S. II licensee to a P.S. III licensee shall not be permitted.]

[Inserted by Notification No. (10)-B-1-127-99-CTD-V, dated 17-2-2000.]

37I.

Place of sale by licensee.

- A licensee holding a licence in form [P.S. II or P.S. II-A]

[Substituted by Notification No. (34) B-1-58-96-CTD-V, dated 29-8-1996.]

or in Form P.S. III shall not effect sales of poppy straw at any place or premises other than the place or the premises specified in his licence.

37J.

Bonds for performance of conditions of licence.

(1)

It shall be in the discretion of the licensing authority to refuse to grant a licence under this Chapter to any person until such person shall have given a bond for the due performance of the conditions subject to which it is proposed that such licence shall be granted binding himself in the event of his committing a breach of any of such conditions or causing or permitting any such breach to be committed or in the event of his abandoning the business connected with the such licence before the expiry of the term for which such licence may be granted, to pay such compensation not exceeding the amount named in the bond as the District Excise Officer may fix.

(2)

The payment of compensation under sub-rule (1) shall not operate as a bar to or otherwise affect any other proceeding which may lawfully be taken against the licensee in respect of the infringement of the conditions of this licence.

37K.

Production of licence and accounts.

- The licensee holding the licence under this chapter shall at once produce his licence and accounts for inspection on demand by any officer appointed under Section 7 of the Act and he shall not prevent any such officer from entering the place or premises mentioned in this licence at any hour during day or night.

37L.

Furnishing of returns.

- The licensee holding a licence under this chapter shall furnish such returns and information as may from time to time be required by the licensing authority.

37M.

Disposal of balance.

- The following conditions shall apply to the disposal of balance of poppy straw left with a licensee holding a licence under this Chapter after cancellation or determination of his licence ;-

(a)

If the licensee has obtained a new licence for the same article which is to come into force immediately on the expiry of

the old licence and is granted for the same place or premises, he may retain his balance of stock of poppy straw for the purposes of the new licence;

(b)

If the licensee's new licence is for different place or premises he shall on the expiry of the old licence forthwith deposit his stock of poppy straw with such person as the District Excise Officer may, by general or special order appoint for the purpose and shall not remove it thence to the new shop except under a permit granted by an Excise Officer not below the rank of Sub-Inspector;

(c)

If the licensee has been granted no other licence he shall deposit his balance of poppy straw provided in Clause (b) and with the prior sanction of the District Excise Officer may dispose it of in lump-sum to any other licensee of the poppy straw. The stock shall then be transported to the place or premises of such licensee under a permit granted by an Excise Officer not below the rank of Sub-Inspector. In the event of the former licensee being unable to dispose of his balance of poppy straw within 30 days from the date of expiry of his licence the person to whom the new licence has been granted in his stead or if no such new licence has been granted any licensee of the poppy straw may be required, under penalty of forfeiting his licence to purchase the article at such price as the District Excise Officer may, fix and in any quantity not exceeding that which the District Excise Officer may determine to be ordinarily saleable by him in two months ;

Provided that if the poppy straw is unfit for use the whole of it or, if the quantity is unreasonable large the excess may be destroyed under the orders of the District Excise Officer. The licensee shall not be entitled to any compensation for any loss suffered in consequence of action taken under this rule.

(d)

[Notwithstanding anything contained in Clauses (b) and (c) the outgoing P.S. II/P.S. III licensee shall not be permitted or directed by the District Excise Officer to transfer the stock of poppy-straw held in balance on the expiry/cancellation of his licence to any P.S. II/P.S. III licensee of other district. The outgoing licensee may transport/sell or may be directed by the District Excise Officer to do so, the leftover stock of poppy-straw to a P.S. II/P.S. III licensee of the same district, wherein such outgoing licensee held a P.S. II/P.S. III licence before its expiry/cancellation.]

[Inserted by Notification No (50)-B-1-70-99-CTD-V, dated 15-10-1999.]

37N.

Restriction on Railway Authority or Transport Agency.

- No Railway authority or Transport Agency shall :-

(a)

receive or convey poppy straw or medicine containing poppy straw which is not sealed and accompanied by transport pass from an office duly empowered in this behalf;

(b)

Convey poppy straw or medicine containing poppy straw otherwise than :-

(i)

direct in custody of Railway official/Transport Agency official up to the destination; and

(ii)

according to the route prescribed in such pass.

37O.

Medical use of poppy straw.

(1)

Any person desiring to possess poppy straw for the purpose of his own consumption shall make an application in the Form P.S. VI for a permit to the District Excise Officer.

(2)

On receipt of an application under sub-rule (1) the District Excise Officer shall make such enquiry as he deems necessary and if he is satisfied that there is no objection to grant the permit applied for, he may grant the applicant a permit in Form P.S. VII on payment of a fee of Rs. 12 per financial year or part thereof provided that no such permit shall be granted :-

(a)

except on the production of a certificate in Form P.S. VIII issued by a Medical Officer in the manner provided in Rule

37-P;

(b)

to a person under the age of 21 years;

(c)

[To a person who was not holding any similar permit or registration card for poppy-straw immediately prior to the date of application in any part of India.] [[Substituted by Notification No. (33)-B-1-130-2001-CTD-5, dated 28-9-2001. Prior to substitution it was as under:

'(c) to a person who was holding any similar permit or registration card for poppy straw immediately prior to the date of application in any part of India.']]

(d)

to a person who so applied for a permit alongwith Medical Certificate after 60 days of the issue of medical certificate.

37P.

The manner in which a Certificate may be issued by the Medical Officer.

- The Medical Officer of the district, where addict of poppy straw resides, shall follow the procedure prescribed in this rule for the exemption of a person applying for a permit for the possession of poppy straw for personal consumption on medical grounds and for the issue of a certificate to him (hereinafter called the applicant) :

(i)

The Medical Officer shall examine the applicant upon his own application or upon the direction of the District Excise Officer;

(ii)

The Medical Examination of the applicant shall except as otherwise directed by the District Excise Officer be made at the place appointed by the Government in that behalf or at the headquarter of the Medical Officer :

Provided that an applicant who is more than sixty years of age or who is physically incapable to present himself for medical examination may, at his request and on the recommendation of the District Excise Officer be examined at the applicant's residence by the Medical Officer;

(iii)

The Medical Officer shall after examining the applicant and after taking into consideration the provisions of this Chapter record his opinion clearly and explicitly in form P.S. VIII as to whether the applicant is required to use poppy straw as a medical necessity and if so, the quantity therefor shall be mentioned in the certificate. Such a certificate shall only be granted to an addict of poppy straw, who would suffer irreparable damage from the withdrawal of the poppy straw, if the same is not made available to him.

(iv)

The Medical Officer shall take into consideration the age, weight, general health, medical history, illness, and period of habituation to taking the poppy straw and any other matter as he may deem fit, and carry out such test as he deems proper With the consent and at the expense of the applicant. The Medical Officer shall also take into consideration for the aforesaid purposes any statement made by the applicant or any fact or observation recorded by the application or his personal medical Advisor.

(v)

The Medical Officer shall prepare a record of the medical examination in triplicate in Form P.S. IX and shall give one copy to the applicant while forwarding one copy to the District Excise Officer concerned and retain one copy for the permanent record of his officer.

(vi)

The Medical Officer shall charge a fee of Rs. 10 and Rs. 25 respectively for medical examination at the office of the Medical Officer or at the residence of the applicant, as the case may be. Such fee shall be retained by the Medical Officer who examines the applicant.

(vii)

On receipt of Medical certificate granted under clause (iii) the District Excise Officer shall issue a permit to the applicant in Form P.S. VII for such quantity as may be recommended by the Medical Officer and in the manner as laid down in Rule 37-0 ;

Provided that the quantity of poppy straw shall progressively and automatically be reduced by 1/3rd every quarter and that this shall be exclusively mentioned in the permit itself;

Provided further that where the District Excise Officer has reasons to disagree with the Medical Certificate granted under clause (iii) by the Medical Officer, he may after recording his reasons in writing, refer the case to the Chief Medical Officer concerned and they Chief Medical Officer shall constitute a Medical Board of three doctors consisting of atleast one specialist in Medicine, which shall re-examine the case and submit its report to the District Excise Officer within 30 days of the reference made by the District Excise Officer. During the period of 30 days a temporary permit in Form P.S. X shall be granted to the applicant on the basis of the Medical Certificate granted under clause (iii).

37Q.

Poppy Straw for Scientific Purpose.

(1)

Any person, who is a research scholar of a recognised University or an approved Medical Practitioner or Vaidyas, and not disqualified as per provisions under sub-rule (3) of Rule 37-E may apply to the Excise Commissioner for the issue of poppy straw, required for scientific purpose. He will submit his application mentioning his name, father's name, age, place of residence, profession, if any, purpose for and quantity in which poppy straw is required.

(2)

On receipt of such application the Excise Commissioner shall make such enquiries as he may deem necessary.

(3)

If the Excise Commissioner is satisfied regarding the genuineness of the requirement and purpose for which poppy straw is desired, he shall allow the applicant to obtain poppy straw, from the licensee holding licence if Form P.S. III of the District where the applicant resides.

(4)

The applicant, before obtaining poppy straw as provided in sub-rule (3) shall, execute a bond to the satisfaction of the District Excise Officer concerned that the poppy straw' applied for shall be utilised for the purpose mentioned in his application submitted to the Excise Commissioner under sub-rule (1). District Excise Officer may obtain security as he may deem fit. In case of misuse of poppy straw applicant shall be prosecuted as if he had unauthorised possession of poppy straw. Amount deposited as security shall also stand as forfeited to the State Government.

37R.

Renewal of Licence/Permit.

(1)

A licence or permit once granted under this chapter and not cancelled under these rules may on application be renewed by the Licensing Authority on payment of fees specified for licence/permit under this chapter. An application for renewal of such licence shall be made before the 15th March each year.

(2)

If a licence/permit is defaced or lost or destroyed the Licensing Authority, after making such enquiry as it deems necessary, may issue a duplicating licence/permit on payment of a Fee of Rs. Five.

37S.

[Transit allowance.

[Inserted by Notification No. (23)-B-1-19-2000-CTD-V, dated 30-3-2000.]

(a)

Transit allowance for the actual loss of poppy straw caused by loading, unloading, handling etc. during transit shall be allowed at the rate mentioned in sub-rule (b) or (c) given below. The basis of computation shall be the actual quantity of poppy straw transported or exported.

(b)

For all transports within district i.e. from cultivator's storage place/P.S. II. A licensee to a P.S. II licensee, from an additional godown to its principal godown, from a P.S. II licensee to a PS. II/P.S. III licensee, the maximum limit of wastage shall be one per cent.

(c)

For all transports of poppy straw outside the district or exports thereof, the permissible limits of wastage shall be two per cent.

(d)

In case of any deficiency in excess of the limit prescribed under sub-rule (b) or (c) above, the licensing authority may impose penally at a rate not exceeding Rs. Ten per kilogram on such excess wastages. In addition, he may cancel the

licence or compound the breach of these sub-rules in lieu of such cancellation.]

37T.

[Storage loss and margin of deviation.

[Inserted by Notification No. (23)-B-1-19-2000-CTD-V, dated 30-3-2000.]

(1)

The maximum limit of storage loss owing to dryage, stocking, stacking, crushing of poppy straw, climatic changes etc. on the poppy straw stored with a P.S. II/P.S. II A/P.S. III licensee shall be upto six per cent. This permissible limit of storage loss shall be calculated on the total quantity of poppy straw procured by the licensee during entire period of the licence.

(2)

Poppy straw stored with P.S. II/P.S. II A/P.S. III licensee may gain in weight during rainy/winter season owing to absorption of moisture. As such, deviation margin upto one per cent is permitted on the stock of poppy straw held in balance by the licensee during rainy/winter season.

(3)

In case of any deficiency in excess of the limits prescribed under sub-rule (1) the licensing authority may impose penalty at a rate not exceeding rupees ten per kilogram on such excess storage loss. In addition, he may also cancel the licence or compound the breach of sub-rule (1) in lieu of such cancellation.]

37U.

[Limitation of prosecution.

[Inserted by Notification No. (25) B-1-1-05-2-V, dated 31-3-2006.]

- No Court shall take cognizance of an offence against a licensee of poppy straw in wholesale or retail, for the breach of the conditions of licence, pass or permit issued under Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985 and punishable under the Narcotic Drugs and Psychotropic Substances Act, 1985 and the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985 except on a complaint, report or sanction of the Collector of the District concerned.]

Chapter IV

38.

Appeal.

- An appeal shall lie from an original or appellate order of an Excise Officer as follows, namely :-

(a)

to the Collector when the order is made by an Excise Officer below the rank of Collector;

(b)

To the Excise Commissioner, when the order is made by the Collector;

(c)

To the State Government, when the order is made by the Excise Commissioner.

39.

Limitation of Appeal and Copy of order objected to accompany petition.

(1)

Every petition of appeal shall be presented within thirty days of the date of decision of order appealed against and shall be accompanied by the decision or order in original or by a certified copy of such decision or order unless the omission to produce such decision or order, or a copy thereof is explained to the satisfaction of the appellate authority :

Provided that in computing the period of appeal aforesaid the time requisite for obtaining a copy of decision or order shall be excluded.

(2)

The memorandum of appeal may be submitted by post or may be presented to the officer concerned or to such other officer as he may appoint in this behalf by the party concerned or by a recognised agent or legal practitioner.

40.

Power of Appellate Authority.

(1)

The appellate authority may either admit the appeal or after calling for the giving the appellant an opportunity to be heard may summarily reject it :

Provided that the appellate authority shall not be bound to call for the record where the appeal is preferred or does not lie.

(2)

If the appeal is admitted the appellate authority may confirm, vary or reverse the decision or order appealed against or may direct such further investigation to be made, as it may think necessary or may remand the case for disposal with such directions as it thinks fit ;

Provided that it shall not under this rule vary or reverse any decision or order affecting any right of any private person without having given to such person notice to appear and be heard in support of such decision or order.

41.

Power to stay execution of orders.

(1)

If an appeal is admitted, the appellate authority may, pending the result of the appeal, direct that the execution of the order appealed from be stayed.

(2)

If execution of any order is stayed under sub-rule (1) such security may be taken or conditions imposed as the appellate authority thinks fit.

42.

When the appeal shall be final.

(1)

When the original order is confirmed on first appeal, a second appeal shall not lie.

(2)

When any such order is modified or reversed by the Collector on appeal, the order made by the Excise Commissioner on second appeal, if any, shall be final.

43.

Power of revision of Superior Officers.

- The Chief Revenue Authority or the Excise Commissioner or the Collector may, at any time on its/his motion or on the application made by the party for the purpose of satisfying itself or himself as to the legality or propriety of any decision made up order passed by any officer subordinate to it or him call for and examine the record of any case pending before or disposed of by such officer, and may pass such order in reference thereto, as may appear proper :

Provided that-

(i)

no application for revision shall be entertained against an order or decision appealable under these rules;

(ii)

no such application shall be entertained unless presented within 60 days from the date of decision or order and in computing the period aforesaid the time requisite for obtaining the copy of the said decision or order shall be excluded.

(iii)

No decision or order shall be varied or reversed affecting any right of any private person without having given to such person notice to appear and be heard in support of such decision or order.

Note. - Application for the revision of any decision made or order passed by a Collector in proceeding relating to the actual recovery' of dues of the State Government will lie to the higher revenue authority in the manner provided by the Madhya Pradesh Land Revenue Code, 1959 (No. 20 of 1959) or any Law for the Recovery of Public Demands, or the Rules made thereunder.

44.

Application for revision.

- An application for revision shall be presented in the same manner as a petition of appeal.

45.

No appeal against certain order.

- No appeal shall lie from any order rejecting an application for revision.

46.

Transfer of appeals or applications for revision.

- The State Government may transfer any appeal or application for revision from the Excise Commissioner or a Collector

to any officer specially authorised to dispose of such appeals or application under clause (c) or clause (d) of Rule 2 of rules of chapter I.

47.

Authority/Officers to whom revision lies.

- Any order passed by an excise officer may be revised by the State Government, the Excise Commissioner or the Collector to whom such officer is subordinate under these rules either on its or his own motion, or on the application of any person or party interested and in the latter case such application shall be presented in the same manner as memorandum of appeal.

[Chapter IV-A]

[Inserted by Notification No. (37I-B-1-73-99-CTD-V. dated 14-5-1999.)]

47A.

Special provisions relating to use etc. of morphine by the recognised medical institutions.

- Notwithstanding any provision to the contrary contained in these rules, possession, transport, purchase, sale, import inter-state, export inter-state or use of morphine or any preparation containing morphine in respect of or by a recognised medical institution, shall be as per the provisions of this chapter.

47B.

Definitions.

- In this chapter, unless the context otherwise requires :-

(a)

"morphine" includes any preparation containing morphine;

(b)

"recognised medical institution" means a hospital or medical institution recognised for the purposes of this chapter.

47C.

Recognition of medical institutions and cancellation thereof.

(1)

Every medical institution, which intends to be recognised for the purpose of this chapter, shall apply in Form M-I to the Drug Controller, Madhya Pradesh who shall convey his decision within three months of the receipt of the application.

(2)

If it comes to the notice of the Drug Controller of Madhya Pradesh that morphine obtained by recognised institution was supplied for non-medical use or that any of the rules under this Chapter is not complied with, the Drug Controller may, for reasons to be recorded in writing, revoke the recognition accorded under these rules.

47D.

Duties of recognised medical institution.

- Every recognised medical institution shall-

(a)

Designate one or more qualified medical practitioners who may prescribe morphine for medical purposes. When more than one qualified medical practitioner have been designated, one of them shall be designated as over all in charge.

(b)

The designated medical practitioner or the over-all-in- charge, as the case may be, shall-

(i)

endeavour to ensure that the stock of morphine is adequate for patients needs;

(ii)

maintain adequate security over stock of morphine;

(iii)

maintain a record of all receipts and disbursements of morphine in Form M-2 and;

(iv)

ensure that estimates and other relevant information required to be sent by the recognised medical institution under this chapter are sent to the authorities concerned.

47E.

Sending of estimates of requirement of morphine by the recognised medical institution.

- Every recognised medical institution shall send their annual requirement of morphine in Form M-3 by 30th November of

the preceding year alongwith the name and address of the supplier from whom they intend to buy it, to the Drug Controller.

47F.

Approval of estimates by the Drug Controller.

- The Drug Controller on receipt of estimates of the annual requirement shall consider it, and may, if necessary, call for necessary clarifications. A reply regarding approval or non-approval thereof shall be sent before the 21st of December of the preceding year. A copy of the communication shall be sent to each supplier whose name has been given in the estimate, if the supplier is located in another State thereto the Drug Controller of that State, the Drug Controller General of India and the Narcotics Commissioner of India.

47G.

Supplementary estimates.

- If the requirement of the recognised medical institution exceeds the annual estimate approved by the Drug Controller, the recognised medical institution may send a supplementary estimate at any time to the Drug Controller which shall be considered and dealt with by the Drug Controller in the same manner as prescribed for the annual estimates.

47H.

Possession, transport, sale, import inter-state etc. of morphine.

- Possession, transport, purchase, sale, import inter-state, export inter-State or use of morphine in respect of or by a recognised medical institution shall be regulated in accordance with the following provisions :-

(a)

The recognised medical institution shall place orders for purchase to a manufacturer/supplier in Form M-4 alongwith a photocopy of the communication of the Drug Controller vide which the institution was recognised for the purpose of this Chapter and a copy of the communication of the Drug Controller vide which the approved estimates were conveyed. A copy of the order for purchase shall be sent to the Drug Controller and the Narcotics Commissioner of India.

(b)

Any manufacturer/supplier shall send morphine to the recognised medical institution under this chapter only on the basis of an order for purchase received in Form M-4 alongwith copies of recognition granted by the Drug Controller and the approved estimates communicated by the Drug Controller. The manufacturer/supplier shall despatch the morphine consignment alongwith a consignment note in quintuplicate in Form M-5. Information about despatch of consignment shall be sent by the manufacturer/supplier to the Drug Controller of the State in which the manufacturer/supplier is located, the Drug Controller of Madhya Pradesh and the Narcotics Commissioner of India. He shall also keep a copy of the consignment note.

(c)

On receipt of the consignment, the recognised medical institution shall enter the quantity received with date in all the copies of the consignment note, retain the original consignment note, send the duplicate to the supplier, triplicate to the Drug Controller, the quadruplicate to the Drug Controller of the State (in case the consignment originated outside M.P.) in which the supplier is located and the quintuplicate to the Narcotics Commissioner of India.

47I.

Maintenance of Records.

- All records generated under this chapter shall be kept for a period of two years from the date of transaction which shall be open for inspection by the officers empowered by the State Government under Sections 41 and 42 of the Act.

47J.

Inspection of stocks of morphine.

- The stocks of morphine under the custody of a recognised medical institution shall be open for inspection by the Drug Controller or any other officer subordinate to him or other officers of the State Government empowered under Sections 41 and 42 of the Act, and the rules made thereunder.

47K.

Appeals.

- Any institution aggrieved by any decision or order passed by the Drug Controller relating to recognition, revocation of recognition of any institution or non-approval or cancellation of approval of estimates may appeal to the Secretary. Public Health and Family Welfare Department within ninety days from the date of communication of such decision or order.]

Chapter V

General

48.

Period of licence or permit.

- No licence or permit under the aforesaid provisions shall be granted for any period beyond 31st March, next following the date of commencement of the licence or permit as the case may be.

49.

The personal character of the Licensee.

- Every licence granted under these rules shall be deemed to have been granted personally to the licensee named therein and shall, on the expiry thereof, be surrendered to the District Excise Officer. If any licence holder dies during the currency of his licence such licence shall forthwith cease to be in force.

49A.

[

[Inserted by Notification No. (50)-B-1-70-99-CTD-V, dated 15-10-1999.]

No agent or servant shall be appointed by any licensee for the management of any licence or operations connected therewith, without previous approval of the District Excise Officer.]

50.

Cancellation of licence or order.

- Subject to any directions that the Excise Commissioner may give in this behalf, the officer who has granted a licence or has by order approved or authorised, any person under these rules, may cancel or suspend such licence or order :-

(i)

if such person-

(a)

has by himself or by any servant or person acting on his behalf, committed any breach of the conditions of such licence or order or of these rules; or

(b)

has been convicted of any offence under the Act or under the law for the time being in force relating to excise or opium revenue, or of any criminal offence;

(ii)

if it is a condition of such licence or order that it may be cancelled or suspended at the will of such officer;

(iii)

in any other case, after giving to such person fifteen days' notice and shall cancel such licence or order within fifteen days on receiving from such person notice that he intends to surrender the same.

51.

Repeal and Savings.

(1)

The Madhya Pradesh Opium Rules, 1959, the Madhya Pradesh Dangerous Drugs Rules, 1959, and the Madhya Pradesh Poppy Husk Rules, 1959 are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken or purported to have been done or taken under any of the rules repealed by sub-rule (1) shall in so far as it is not inconsistent with provisions of the Act or rules made thereunder, be deemed to have been done or taken under the corresponding provisions of the Act or rules made thereunder.

Form O.P. I

[See Rule 3 (2)]

Licence for the Possession and Sale of Medicines Containing Opium on Prescription

Licence is hereby granted under and subject to the provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985) and the rules made thereunder to Shri/Shrimati/Ku (hereinafter called the licensee) on payment of licence fee of Rs. 10 authorising him/her to possess and sell medicines containing opium at his dispensary situated at the tehsil of..... in the district of subject to the following conditions, namely :-

Conditions

1. This licence shall remain in force from to (both days inclusive).
2. The licensee shall not have in his possession at any one time medicines containing opium exceeding.....
3. The licensee may obtain his requirements of medicines containing opium from any licensed druggist or manufacturer licensed under the provisions of the Medical and Toilet Preparations (Excise Duties) Act, and rules made thereunder who is permitted to sell such medicines under the Madhya Pradesh Narcotic Drugs and Psychotropic Substances Rules, 1985, or may import the same from any other part of India subject to the provisions of the said rules.
4. The licensee shall not dispense any medicine containing opium for his patients except under a prescription issued by him and in the manner laid down in such prescription.
5. The licensee shall not keep medicines containing opium except at his dispensary.

6.

(1)

The licensee shall maintain in the following form proper and true accounts showing the quantity of opium preparations in his possession from day to day and shall submit to the office of the District Excise Officer a monthly abstract of such accounts :-

Date

Opening balance

Quantity received this day and when received

Total quantity to be accounted

Quantity sold this day

(1)

(2)

(3)

(4)

(5)

Full name of Purchaser

Full address

Date of prescription with name of approved
medical practitioner who granted.

Balance

Remarks

(6)

(7)

(8)

(9)

(10)

(2)

The licensee shall the and preserve for one year the said accounts, passes and the prescriptions in original in which he has prescribed any medicine containing opium and shall produce them for inspection alongwith the balance of medicine containing opium held by him at any time when the Collector or any other officer empowered in this behalf or any officer not below the rank of Sub-Inspector of Excise or police calls upon him to do so.

7. This licence may be suspended or cancelled at any time by the officer granting it,-

(a)

for non-payment of any fee payable by the licensee;

(b)

for default or violation by himself or by any servant or person acting on his behalf of any of the conditions specified in the licence;

(c)

if the licensee infringes any of the provisions of the said Act or the rules in force thereunder or any executive orders or instructions made or received from time to time;

(d)

After giving the licensee 15 days notice or if the licensee desires to surrender his licence within fifteen days from the

receipt of such notice from him.

8. In case this licence is surrendered or cancelled during the currency of the period for which it is granted or is not renewed on its expiry a licensee shall forthwith handover the whole of the stock of medicines containing opium to the Collector. The licensee shall also handover to the Collector all accounts passes and prescriptions in original which he is required to keep and preserve under this licence.

Granted this.....day of.....19.....

.....

Seal of the office.

Place.....

Signature and designation of the Officer granting the licence.

Form O.P.-2

(Mono)

Druggist Licence

Under Rule 4 (2) of Narcotic Drugs and Psychotropic Substances Madhya Pradesh Rules. 1985 and in consideration of the payment of a fee of Rs. 10, the receipt of which is hereby acknowledgment licence is hereby granted to (hereinafter called "The Licensed Druggist") to sell preparations containing opium as defined in clause (xv) of expression 'Opium' in Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 (61 of 1985), on the premises.....in.....street for the year ending 31st March, 19.....subject to the following conditions, namely :-

Conditions

1. The licensed druggist shall-

(1)

not transfer this licence to any other person;

(2)

not have in his possession at any one time preparations containing opium exceeding;

(3)

procure his requirements of preparations containing opium either by importing or by purchasing them from the manufacturers licensed under the provisions of the Medicinal and Toilet Preparations (Excise Duties) Act, or licensed druggist of Madhya Pradesh State;

(4)

maintain in the following form proper and true accounts showing the quantity of opium preparations in his possession from day to day and shall submit to the office of the District Excise Officer a monthly abstract of such account :-

Date

Opening balance

Quantity received this day and when received

Total quantity to be accounted

Quantity sold this day

(1)

(2)

(3)

(4)

(5)

Full name of Purchaser

Full address

Date of prescription with name of approved

medical practitioner who granted.

Balance

Remarks

(6)

(7)

(8)

(9)

(10)

(5)

retain in the shop for inspection every prescription on the authority of which opium preparations have been sold and shall not sell more than once on the authority of any one prescription. The licensee shall preserve all such prescriptions and the sale account for one year from the date on which the period of the licence expires.

(6)

produce his licence, sale accounts, file of prescription with stock of opium preparations immediately on demand of any officer authorised by the Collector or of any officer not below the rank of a Sub-Inspector of Excise or Police.

(7)

not sell to any person other than-

(a)

a person producing the prescription of an approved medicinal practitioner and not exceeding such quantity as may be stated in such prescription; or

(b)

a licensed druggist or a licensed approved medical practitioner and in a quantity not exceeding that which he may be authorised to possess.

2.

(1)

This licence may be cancelled by the Collector if any breach of the Narcotic Drugs and Psychotropic Substances Act, 1985 or of the rules made thereunder or of any executive orders or instructions made or received from time to time or of any of the above mentioned conditions is committed by the licensed druggist or his partner or agent or any other person employed in the premises for which this licence is granted in addition to other punishment which may be afflicted under the provisions of the Act.

(2)

On an application made in this behalf, the Collector may accept the sum of money not exceeding Rs. 200 in lieu of cancellation of the licence.

(3)

The District Excise Officer may exercise the powers of Collector under sub-clause (2) above, provided that if in his opinion the sum of money to be accepted by way of composition would exceed Rs. 50/- he shall submit such case to the Collector.

3. In case this licence is surrendered suspended or cancelled during the currency of the period for which it is granted or is not renewed on its expiry the licensee shall forthwith handover the whole of the unused stock of the medicines or preparations containing opium to the Collector. The licensed druggist shall also handover to the Collector all accounts, passes and prescriptions in original which he is required to keep and preserve under this licence.

4. The licence may be withdrawn at any time without notice at the discretion of the Collector.

Granted this.....day of..... 19...

Seal of Office

Collector

District

Form O.P 3

[See Rule 5 (2)]

Form of Register of Opium Addicts

S. No.

Full name of the Addicts

Age

Religion

(1)

(2)

(3)

(4)

Caste

Place of residence with tehsil

Period for which addicted to opium

Name of the ailment, etc. for which opium is required

(5)

(6)

(7)

(8)

Quantity of opium required per month

Quota of opium sanctioned by the medical authority

Permit No. and date with designation of the medical authority.

Remarks.

(9)

(10)

(11)

(12)

Form O.P. 4

Mono

Permit for Possession of Opium for Personal Consumption

(1)

Permit holder's name

(2)

Father's/Husband's name

(3)

Nationality, religion or caste

(4)

Apparent age

(5)

Address in full

(6)

Occupation

(7)

Quantity of opium recommended per month by the Medical Authority.

(8)

Name of the ailment for which opium is required or whether opium is essential for the addicts health or for smoking.

(9)

Personal identification marks of the permit- holder as verified by the medical authority.

(10)

Registration No. and date of the permit- holder (to be filled in by the Excise authority).

Under Rule 5 (4) of Narcotic Drugs and Psychotropic Substances Madhya Pradesh Rules, 1985 in consideration of the payment of a fee of Rs.....the receipt of which is hereby acknowledged, this permit is granted to.....of.....mentioned above (hereinafter called "permit holder") to possess, transport and consume opium subject to the following conditions, namely :-

Conditions

1. This permit shall remain in force from..... to (both days inclusive).

2. The permit-holder shall as soon as possible present this permit before the Excise Sub-Inspector of his circle or area for his counter-signature and in any case not later than one month of the receipt of this permit.

3. The opium purchased under this permit shall be used solely for the personal consumption by the permit-holder and he is not entitled to transfer it to others.

4. The permit-holder shall not purchase during any one month opium exceeding provided that this quantity may be reduced during the currency of the permit.

5. Opium will be issued to the permit-holder in each quarter as under :-

Period

Monthly quota

April to June

.....grams

July to September

.....grams

October to December

.....grams

January to March

.....grams

6. The permit shall obtain his supplies of opium from..... warehouse/treasury/sub-treasury only. The permit-holder shall get the details of each purchase entered on the reverse of the permit by the officer issuing opium before he removes the opium purchased by him from the premises.

7. The permit-holder shall credit the price of opium at such rate as may be fixed by Government, from time to time in this behalf in a treasury or sub-treasury and shall present the receipted treasury challan to the officer-in-charge for issuing opium.

8. This permit shall be personal and non-transferable, and may be cancelled at any time by the officer granting it.

9. On breach of any of the above conditions, or provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985, and rules made thereunder or of any executive orders or instructions, issued from time to time this permit shall be cancelled.

Granted this..... day.....of.....19.....

.....

Signature or left-hand thumb

impression of the permit-holder

.....

Signature and designation of officer granting the permit.

.....Countersigned Inspector/ Sub-Inspector (Excise)

..... Circle

Dated 19.....

(Reverse of the Permit)

Details of each purchase of opium made by the permit-holder from..... to19.....

Date

Total quantity of opium permitted to be purchased

in current month

Quantity of opium purchased

Total quantity of opium purchased in the current

month

Difference of column (2) and (4)

Signature of the officer in-charge issuing opium.

(1)

(2)

(3)

(4)

(5)

(6)

Form O.P. 5

Under the Rules 7 (1) and 7 (2) of the Narcotic Drugs and Psychotropic Substances Madhya Pradesh Rules, 1985.

Counterfoil

Pass for the Import Inter-State Export Interstate/transport of Opium as Defined in Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for Medicinal Purposes.

(To be issued in quadruplicate, one copy being kept as a counterfoil in the office of issue, another to be returned by the consignor to the Collector of the district to which the consignment is sent after noting the details of the drugs, consigned on the back of the foil, the third to be sent to the authority of the exporting district and the fourth to accompany the consignment).

Pass granted to (here enter name of consignee) to import inter-state from/export interstate to/transport from or via...(here enter locality and district) into/from/ to (here state district) opium as defined in

Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for medicinal purposes to the amount of as specified below :-

(here state description and weight or quantity of each kind of drug). This pass must be used within one month from the date of issue. The duplicate pass shall be returned by the consignor after despatch of the consignment to the Collector (District).

The bulk of the consignment shall not be broken in transit.

Place.....

Date

Excise Commissioner/

Collector

Form O.P. 5

Under the Rules 7 (1) and 7 (2) of the Narcotic Drugs and Psychotropic Substances Madhya Pradesh Rules, 1985.

Duplicate

Pass for the Import Interstate/export Interstate/transport of Opium as Defined in Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for Medicinal Purposes.

(To be returned by the consignor to the Collector of the district to which the consignment is sent after noting the details of the drugs, consigned in (he form on the back of this foil).

Pass granted to (here enter name of consignee) to import interstate from/export interstate to/transport from or via.....(here enter locality and district) into/from/to (herestate district) opium as defined in Section 2 of the Narcotic

Drugs and Psychotropic Substances Act, 1985 for medicinal purposes to the amount of as specified below :-

(here state description and weight or quantity of each kind of drug).

This pass must be used within one month from the Date of its issue. The duplicate pass shall be returned by the consignor after despatch of the consignment to.the Collector.....(District).....

The bulk of the consignment shall not be broken in transit.

Place

Date.....

Excise Commissioner/

Collector

Form overleaf to be filled up, signed and dated by the consignor and this pass to be returned to the Collector

Backside of 'Duplicate' of Form O.P. 5

Advice of consignment of opium as defined in Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for medicinal purposes.

The drugs specified below have this day, the 19.... been despatched by (mode of conveyance) in charge of.....in.....

(State No. and description of packages)

Description of drugs

Quantity or weight

Packages

(1)

(2)

(3)

Date.....

Forwarded to the Collector.....

Signature of Consignor

Form O.P. 5

Under the Rules 7 (1) and 7 (2) of the Narcotic Drugs and Psychotropic Substances Madhya Pradesh Rules, 1985.

Triplicate

Pass for The Import Interstate/export Inter-State/ Transport of Opium as Defined in Section 2 of Hie Narcotic Drugs and Psychotropic Substances Act, 1985 for Medicinal Purposes.

(To be sent to the authority of the exporting district)

Pass granted to (here enter the name of consignee) to import interstate from/export interstate to/transport from or via (here enter locally and district) into/from/ to..... (here State district) opium as defined in Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for medicinal purposes to the amount of..... as specified below :-

(here state description and weight or quantity of each kind of drug).

This pass must be used within one month from the date of its issue. The bulk of the consignment shall not be broken in transit.

Place

Date.....

Excise Commissioner/ Collector

Backside Of 'Triplicate' Of Form O.P. 5

No.....

Dated the..... 19.....

Copy forwarded to the..... for information.

Place.....

Excise Commissioner/Collector

Form O.P. 5

Under the Rules 7 (1) and 7 (2) of the Narcotic Drugs and Psychotropic Substances Madhya Pradesh Rules, 1985.

Permit

Pass For the Import Interstate/export Interstate/transport of Opium as Defined in Section 2 of the Narcotic Drugs and Psychotropic Substances Act, 1985 for Medicinal Purposes.

(To accompany the consignment)

Pass granted to..... (here enter name of consignee) to import interstate from/export interstate to/transport from or via (here enter locality and district) into/from/ to (here state district) opium as defined in Section 2 of the Act, Narcotic Drugs and Psychotropic Substances Act, 1985, for medicinal purposes to the amount of as specified below :-

(here state description and weight or quantity of each kind of drug).

This pass must be used within one month from the date of its issue. The duplicate pass shall be returned by the consignor after despatch of the consignment to the Collector (District).

The bulk of the consignment shall not be broken in transit.

Place.....

Date.....

Excise Commissioner/ Collector

Form overleaf to be filled up, signed and dated by the consignor before consignment leaves his premises.

Backside of 'Permit' of Form O.P. 5

(Details of consignment)

The drugs specified below have this day, the 19..... been despatched by (mode of conveyance) in charge of in.....

(State No. and description of packages).

Description of drugs

Quantity weight

Packages

(1)

(2)

(3)

Date.....

Signature of consignor.

Manufacturer's Record

Name of Drug....

(A)

Bulk Stock

Note. - A separate page should be assigned in this register to each drug.

Date

Quantity of drug held in stock

Particulars of import certificate

Particulars of licence issued if any

(1)

(2)

(3)

(4)

Particulars of Export Authorization issued by the
country of origin

Quantity received

From whom received

Name

Address

(5)

(6)

(7)

(8)

Total Cols. (2) & (6)

Quantity issued for manufacture

Balance

Remarks

(9)

(10)

(11)

(12)

Manufacturer's Record

Name of Drug.....

(B)

Manufacturing Department

Note. - A separate page should be assigned in this record to each drug.

Date

Quantity of the drug received for manufacture

Form in which manufactured and quantity of drug
in unit

Anticipated theoretical yield

Actual yield

Wastage if any and disposal of wastage

Quantity transferred to record of sales

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Drugs manufactured and transferred to stores

Total

Initial of person in charge of manufacturing operations.

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. Conc.

Liquid preparation Qty. Conc.

(8)

(9)

(10)

(11)

(12)

(13)

Manufacturer's Record

Name of Drug...

(C)

Stores Department

Note. - A separate page should be assigned in this record to each drug.

Quantity of drug held in stock

Date

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Total

(1)

(2)

(3)

(4)

(5)

(6)

Quantity of drug received for sale from manufacturing department

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Total

(7)

(8)

(9)

(10)

(11)

Total Stock

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Quantity of drug (Cols. 6+11)

(12)

(13)

(14)

(13)

(16)

Quantity sold

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Total quantity of the drug sold

(17)

(18)

(19)

(20)

(21)

To whom sold

Name

Address

Authority for sale

Mode of delivery

(22)

(23)

(24)

(25)

Closing balance

Initials of the persons making the entry

Remarks

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Total quantity of drug

(26)

(27)

(28)

(29)

(30)

(31)

(32)

Form No. N.D. 1

(See Rule 29)

Licence for Sale of Cocaleaf and Manufactured Drugs other than prepared opium by a Vendor

Under Rule 29 of Narcotic Drugs and Psychotropic Substances Rules, Madhya Pradesh, 1985 and in consideration of the payment of a fee of Rs..... the receipt of which is hereby acknowledged licence is granted to you..... to sell otherwise than on prescription on your premises in.....street, in the town ofin the district ofduring the year ending the 31st March 19.... subject to the following conditions, namely :-

Conditions

1. You shall not transfer this licence to any other person.

2. You shall not have in your possession more than miligrams of [.....]

[Here enter the kind of the drugs that may be sold e.g. (1) coca derivatives and coca leaf, (2) medical hemp, (3) medical opium or (4) morphine diacetyl-morphine or official or non-official preparations containing more than 0.2 per cent of morphine or containing any diacetyl-morphine, as the case may be.]

and other allied drugs taken together.

3. You shall not sell [.....]

[Here enter the kind of the drugs that may be sold e.g. (1) coca derivatives and coca leaf, (2) medical hemp, (3) medical opium or (4) morphine diacetyl-morphine or official or non-official preparations containing more than 0.2 per cent of morphine or containing any diacetyl-morphine, as the case may be.]

except on the premises for which this licence is granted.

4. You shall not sell [.....]

[Here enter the kind of the drugs that may be sold e.g. (1) coca derivatives and coca leaf, (2) medical hemp, (3) medical opium or (4) morphine diacetyl-morphine or official or non-official preparations containing more than 0.2 per cent of morphine or containing any diacetyl-morphine, as the case may be.]

except to the following persons in quantity not exceeding what they may respectively lawfully possess :-

(a)

a vendor or druggist licensed under these rules or under the rule for the time being in force in any other part of India.

(b)

an approved medical practitioner.

(c)

a medical institution authorized and exempted under Rule 21 of the Narcotic Drugs and Psychotropic Substances Rules, Madhya Pradesh, 1985 or under any corresponding rules for the time being in force in any other part of India.

5. You shall maintain correct account of transactions in the following form, a separate page being set-aside for each different preparation of the drug :-

Date

Opening balance

Quantity received this day and whence received

Total quantity to be accounted for

(1)

(2)

(3)

(4)

Quantity sold this day

Full name of purchaser

Full Address

Balance

Remarks

(5)

(6)

(7)

(8)

(9)

6. You shall file ail import passes properly.

7. You shall produce your licence, file of passes and account book and your stock for inspection immediately on demand of any officer specially of generally authorised by the Collector or any officer not below the rank of Sub-Inspector of Excise or police or of Naib Tahsildar. In support of the receipt you shall produce the permits and invoices of supplies obtained.

8. This licence may be cancelled by the Collector if any breach of any of the provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985) or of the rules made thereunder or of the above mentioned conditions is committed by you or by any persons employed by you on the premises for which this licence is granted.

Dated..... 19...

Collector

.....District.

Form N.D. 2

(See Rule 29)

Licence for the Sale of Coca Leaf and Manufactured Drugs other than Prepared Opium by a Druggist

Under Rule 29 of the Narcotic Drugs and Psychotropic substances Rules, Madhya Pradesh, 1985 and in consideration of the payment of a fee of Rs..... the receipt of which is hereby acknowledged licence is hereby granted to you.....druggist to sell.....bona fide as medicine from your premises in.....street in the town of.....in the district of.....during the year ending the 31st March 19... subject to the following conditions, namely :-

Conditions

1. You shall not transfer this licence to any other person.

2. You shall not have in your possession at any one time more than miligramme of [.....]

[Here enter the kind of the drugs that may be sold e.g. (1) coca derivatives and coca leaf. (2) Medical hemp, (3) medical opium or (4) morphine diacetyl-morphine or official or non-official preparations containing more than 0.2 per cent of morphine or containing any diacetyl-morphine, as the case may be.]

3. You shall not sell except on the premises for which this licence is granted.

4. You shall obtain the drugs to be sold under this licence from a licensed vendor thereof in India and you shall not receive or have in your possession any such drugs obtained otherwise.

5. You shall not sell to any person other than a person producing the prescription of an approved medical practitioner and not exceeding such quantity as may be entered in such prescription.

6. You shall not sell coca leaf or the manufactured drugs specified above unless the prescription is in writing, is dated, is signed, by an approved medical practitioner with his full name and address and give the full name and address of the person for whose use it is given. You shall not sell more than once on the authority of a prescription unless it contain a superscription by an approved medical practitioner stating that it is to be repeated, the intervals at which it is to be repeated and the number of times it is to be repeated.

7. You shall retain every prescription on the authority of which you sold the drug :

Provided that you shall first warn the person presenting the prescription that unless it bears a superscription as aforesaid it will be retained and not repeated.

8.

(1)

If the prescription bears a superscription as aforesaid you shall enter on the prescription the date of sale and shall sign or seal the prescription and retain it on the premises for inspection :

Provided that if it appears that drugs have already been sold on the prescription six times or such number of times as the prescription is required to be repeated or that the interval specified in the superscription has not elapsed since the prescription was last dispensed you shall not sell any more drugs on such prescription unless it is further superscribed in that behalf by an approved medical practitioner.

(2)

You shall plainly mark every package or bottle containing the manufactured drugs sold with the amount of the drug, or in the case of a preparation containing any such drug, with the name, amount and percentage of the drug in the article.

9. You shall not store any manufactured drug or coca leaf to be sold under this licence in any premises other than those named herein.

10. You shall keep a correct account in the following form, to be balanced at the close of each day a separate set of pages being set-aside for each different preparation of the drug stocked by you :-

Date

Opening balance

Quantity received

this day and whence received

Total quantity to be

accounted for

Quantity sold this

day

(1)

(2)

(3)

(4)

(5)

Full name of purchaser

Full Address

Date of prescription and name of approved medical practitioner who issued it

Balance

Remarks

(6)

(7)

(8)

(9)

(10)

(b)

You shall not cancel, obliterate or alter any entry in the account or make therein any entry' which is untrue in any particular. Any mistake in any entry may be corrected by marginal note or foot-note giving the correct particulars and date.

11. (a) You shall produce your licence, the accounts of sale of coca leaf or the manufactured drugs specified in his licence, the file of prescription and your stock for inspection immediately on the demand of any officer specially or generally authorized by the Collector or any officer not below the rank of sub-inspector of excise or police or of Naib Tahsildar. In support of the receipts you shall produce the permits and invoices of supplies obtained and in support of the issue the prescription on which the drugs were sold.

(b)

You shall preserve all prescriptions, the sale account and records, etc., for not less than two years from the date on which the period of your licence expires.

12. This licence may be cancelled by the Collector if any breach of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985) or of the rules made thereunder or of the above mentioned conditions is committed by you or your partner or agent or any other person employed by you on the premises for which this licence is granted.

Collector

Dated.....19...

District.

Form N.D. 3

Form of licence for the import interstate/export interstate/transport/transit of [.....]

[Here enter the kind of drug allowed to be imported/exported/transported, e.g. (1) coca derivatives and coca leaf, (2) medicinal help, (3) medicinal opium, or (4) morphine, diacetyl-morphine (official or non-official preparations) as the case may be. They should be entered on the licence and the duplicate and triplicate copies thereof also.]

(To be issued in quadruplicate. One copy being kept as a counterfoil in the office of issue, another to be returned by the consignor to the Collector of the district to which the consignment is sent after noting the details of the drugs consigned on the form on the back of the foil, the third to be sent to the authority of the exporting district and the fourth to accompany the consignment).

Licence granted to.....(here enter name of consignee) to import interstate from/export interstate to/transport from or via (here enter locality and district) into/from/ to (here state district) manufactured drugs other than prepared opium coca leaf to the amount of..... as specified below :-

(here state description and weight or quantity of each kind of drug).

This licence must be used within one month from the date of its issue. The duplicate shall be returned by the consignor after despatch of the consignment to the Collector.....(here enter district).

The Bulk of the consignment shall not be broken in transit

Place

Date

Excise Commissioner/

Collector

Form N.D. 3

Duplicate

Form of licence for the import interstate/export interstate/transport/transit of

(Here enter the name of drug)

(To be returned by the consignor to the Collector of the district to which the consignment is sent after noting details of the drugs consigned in the form on the back of this foil).

Licence granted to.....(here enter name of consignee) to import interstate from/export interstate to/transport from or via (here enter locality and district) into/from/to (here state district) manufactured drugs other than prepared opium coca leaf to the amount of as specified below :-

(here state description and weight or quantity of each kind of drug).

This licence must be used within one month from the date of its issue. The duplicate shall be returned by the consignor after despatch of the consignment to the Collector..... (here enter district).

The bulk of the consignment shall not be broken in transit.

Place.....

Date.....

Excise Commissioner/Collector

Form overleaf to be filled up, signed and dated by the consignor and this duplicate to be returned to Collector.....

Backside of 'Duplicate' of Form N.D. 3

Details of Consignment

The drugs specified below have this day 19 ... been despatched by (mode of conveyance) incharge of..... in (state No. and description of packages)

Description of drugs

Quantity or weight

Packages

(1)

(2)

(3)

Date.....

Signature of consignor

Form N.D. 3

Triplicate

Form of licence for the import interstate/export interstate/ transport/transit of.....

(Here enter the name of drug)

(To be sent to the authority of the exporting district)

Licence granted to (here enter name of consignee) to import interstate from/export interstate to/transport from or via..... (here enter locality and district) into/from/to.... (here State district) manufactured drugs other than prepared opium/coca leaf to the amount of..... as specified below :-

(here state description and weight or quantity of each kind of drug).

This licence must be used within one month from the date of its issue. The bulk of the consignment shall not be broken in transit.

Place.....

Date.....

Excise Commissioner/ Collector

Backside of 'Triplicate' of Form N.D. 3

Dated..... the..... 19...

Copy is forwarded to the.....for information.

Place.....

Excise Commissioner/ Collector

Form N.D. 3

Licence

Form of licence for the import interstate/export interstate/transport/ transit of

(Here enter the name of drug)

(To accompany the consignment)

Licence granted to.....(here enter name of consignee) to import interstate from/export interstate to/transport from or via.....(here enter locality and district) into/from/to (here state district) manufactured drugs other than prepared opium coca leaf to the amount of.....as specified below :-

(here state description and weight or quantity of each kind of drug).

This licence must be used within one month from the date of its issue. The duplicate shall be returned by the consignor after despatch of the consignment to the Collector.....(here enter district).

The bulk of the consignment shall not be broken in transit.

Place.....

Date.....

Excise Commissioner/ Collector

Form overleaf to be filled up signed and dated by the consignor before the consignment leaves his premises

Backside of 'Licence' of Form N.D. 3

Advice of consignment of Manufactured Drugs (other than coca leaf prepared opium).

The drugs specified below have this day the 19.... been despatched by..... (mode of conveyance) in charge of..... in.....(State No. and description of packages).

Description of drugs

Quantity or weight

Packages

(1)

(2)

(3)

Date.....

Signature of consignor

Form N.D. 4

[See Rule 32 (1)]

Register of Manufactured Drugs for Hospitals

Name of the Hospital.....Name of Drugs.....

Note. - A separate page should be assigned in the register to each drug.

Quantity of the drug in stock

Date

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

(1)

(2)

(3)

(4)

(5)

Quantity of the drug received

Dealer or firm from whom received

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Name

Address

(6)

(7)

(8)

(9)

(10)

(11)

Total

Patient's

Ampules No. Qty.

Tablets capsules No. Qty.

Powder Qty. conc.

Liquid preparation Qty. conc.

Name

Card No.

(12)

(13)

(14)

(15)

(16)

(17)

Total daily dose

Administered by

Physician

Closing balance

Ampules No. Qty.

Tablets capsms. No. Qty.

Powder Qty. conc.

Liquid preparation Qty, conc.

(18)

(19)

(20)

(21)

(22)

(23)

(24)

Form N.D. 5

[See Rule 32 (2) (ii)]

Name of Medical Practitioner

Medical Qualifications.....

Registration No.....

Address.....

Note. - (1) A separate page should be assigned in this record, to each drug.

(2)

Natural narcotic drugs obtained from the Government Opium and Alkaloid Works, Ghazipur should also be shown in this record.

Approved Medical Practitioner's

Register of Manufactured Drugs

Name of Drug.....

Note. - A separate page should be assigned in this register to each drug

Date

Drug in stock

Drug received

from

Quantity

from

Quantity

(1)

(2)

(3)

(4)

(5)

from whom received

Total quantity

Patients

Name

Address

from

Name

Address

Disease

(6)

(7)

(8)

(9)

(10)

(11)

(12)

Card No.

Quantity of the drug used during the day on each

patients

Closing balance

Signature of the Registered Medical Practitioner

Remarks

(13)

(14)

(15)

(16)

(17)

Form N.D. 6

[See Rule 32 (2) (ii)]

Patient's Card

(To be maintained by approved medical practitioner using manufactured drug in their professional practice)

1. Full name of the patient.....

2. Profession and Residential Address

.....

3. Age.....

4. Sex

5. Disease for which treated.....

6. Duration of illness.....

7. Date of first consultation.....

.....

Date
Drug used
Form in which used
Quantity of drug used
Initials of the Regd. Medical Practitioner
Remarks
Form N.D. 7
(See Rule 33)
Name of firm.....Name of Proprietor, Director or Manager.....
Description of licensed premises :-
Particulars of licence held under the :-
No. of Licence
Period of validity
(i)
Narcotic Drugs and Psychotropic Substances Act, 1985
.....
.....
(ii)
Drugs Act, 1940
.....
.....
Note. - (1) A separate page should be assigned in this record to each drug.
(2)
Natural narcotic Drugs obtained from the Government Opium and Alkaloid Works, Ghazipur, should also be shown in this record.
Record of Import and Sales of Manufacture Drugs
Note. - A separate page should be assigned in this record to each drug.
Date
Opening Balance
Particulars of import certificates issued under
the Narcotic Drugs and Psychotropic Substances Act, 1985.
Particulars of licence issued if any, under the
I.T.C.
(1)
(2)
(3)
(4)
Receipts
Quantity Imported
Dealer or firm from whom imported
Particulars of Export authorization issued by the
country of origin.
Form in which the drug has been imported i.e. powder, tablet, ampules, etc.
Name
Address
(5)
(6)
(7)
(8)
(9)
Total Cols. 2 and 7

Quantity issued

Purchaser's

Authority for sale (i.e.No. of Excise
permit, etc.)

Name

Address

(10)

(11)

(12)

(13)

(14)

Mode of delivery

Closing balance

Signature of the person making the entry

Remarks

(15)

(16)

(17)

(18)

Form N.D. 8

(See Rule 33)

Name of the firm Name of Proprietor, Director or Manager

Description of licensed premise.....

Particulars of Licence held under the :-

No. of Licence

Period of validity

(i)

Narcotic Drugs and Psychotropic Substances Act, 1985

.....

.....

(ii)

Drugs Act, 1940

.....

.....

Notes. - (1) A separate page should be assigned in this record to each drug.

(2)

Natural Narcotic Drugs obtained from the Government Opium and Alkaloid Works, Ghazipur, should also be shown in this record.

Form N.D. 9

(See Rule 33)

Name of Firm No. of Licence..... Period of validity..... Address Name of Proprietor.....

Note. - A separate page should be assigned in this record to each drug.

Chemists' and Druggists' Register of Narcotic Drugs

Name of Drug.....

(A)

Record of Purchase

Note. - A separate page should be assigned in this record to each drug.

Date

Name of Drug or preparation

Form in which purchased

Quantity

(1)

(2)

(3)

(4)

From whom received

Particulars of Licence held

Remarks

Name

Address

(5)

(6)

(7)

(8)

Chemists and Druggists Register of Narcotic Drugs

Name of Drug.....

(B)

Record Of Sales

Note. - A separate page should be assigned in this register to each drug.

Date

Name of Drug or preparation

Form in which sold

Quantity

Purchaser's

Name

Address

(1)

(2)

(3)

(4)

(5)

(6)

Physician's or Dentist's or Veterinary Surgeon's

Prescription Number

Particulars of licence held

Signature of person making the entry

Remarks

Name

Address

(7)

(8)

(9)

(10)

(11)

(12)

[Form P.S. I]

[Added by Notification No. 1818-B-1-67-V-SR-85, dated 23-4-1986.]

(See Rule 37-C)

Declaration

1. I/We (Name with parentage) residing at Village Tahsil District hereby declare that :-

(a)

I/We cultivated opium poppy during the financial year.....on the land specified in the Schedule below :

(b)

stock of poppy straw directly relatable to the crop produced by me/us have been mentioned in the said Schedule; and

(c)

the building or place specified in the said Schedule are used or are to be used by me/us for storing the stock of poppy straw;

2. I/We.....agree to abide by the provisions of the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985 and orders issued thereunder.

3. I/We declare that to the best of my/our knowledge and belief the information furnished herein is true and complete.
Schedule

1. Village

.....

2. Tahsil

.....

3. District

.....

4. Survey No.

.....

5. Area

.....

6. Description of land specifying boundaries or survey field number

.....

7. Total produce of poppy straw

.....

8. Details of the building or place to be used for storage of total quantity of poppy straw

.....

9. Names and addresses of the licensees to whom poppy straw has been sold and the quantity so sold

.....

10. [Quantity of poppy straw) destroyed

[Inserted by Notification No. 2990-VSR-87, dated 6-6-1987.]

.....]

Place

Dated

Signature or thumb impression of the person cultivating poppy straw.

[Form P.S. II]

[Substituted by Notification No. (14) B-1-95-98-CTV, dated 26-3-1999.]

(See Rule 37-D)

(Licence for The Wholesale Sale of Poppy-Straw)

Under clause (i) of Rule 37-D of the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985, this licence is granted to.....to sell poppy-straw in wholesale from his licensed premises at.....as described in Schedule I given below and which has been auctioned with other poppy-straw licence (s) in..... group of poppy-straw licences from.....to.....in consideration of licence fee of Rs.....subject to the following conditions :-

1. [(a) The licence fee for the group of poppy straw licences shall be paid by the licensees in 12 equal monthly instalments on or before the first working day of each month, provided that keeping in view the local circumstances and with a view to ensuring full recovery of licence fee, the licensing authority may require payment of licence fee from the licensee in lesser number of instalments than twelve.

(b)

In case of default of payment under clause (a) the licensing authority, in addition to any other action under the provisions

of the Act or Rules framed thereunder, may suspend or cancel the licences of the group and may resell the group at the risk of the licensee. Any loss of revenue consequent to such suspension, cancellation or resale shall be recoverable from the licensee as arrears of land revenue.]

2. The licensee shall transact his business from his licensed premises only as described in Schedule I below. In case of inadequate space in the licensed premises for storage of poppy-straw, the licensing authority may permit the licensee to store poppy-straw in additional godown (s) located in the vicinity of the licensed premises. The additional godown (s) thus permitted shall be described in schedule 2 appended to this licence. No transfer/transport/sale/export inter-state of poppy-straw from the additional godown (s) is permitted except its transport to the licensed premises given in Schedule I.

3. The licensee shall maintain correct day to day account of all transactions including all the details about the purchaser, permit or pass and the value of poppy-straw sold. The stock book maintained at the licensed premises shall show the stock of poppy-straw at the licensed premises and the additional godown (s) separately. The account shall be maintained in the following format :

Date
Opening Balance
Quantity received
Whence received
Total quantity column 2 + 3
Quantity exported/ transported
(1)
(2)
(3)
(4)
(5)
(6)
Details of transport/export permit
Details of transport fee/export fee/duty
deposited
To whom sold
closing balance Column 5-6
Remarks
Signature
(7)
(8)
(9)
(10)
(11)
(12)

[3-A. Crushed/Powered Poppy straw shall be stored/stocked at the licensed premises in standard gunny bags each containing such quantity as may be specified by the Excise Commissioner for this purpose and shall be accurately accounted for in the following format :-]

[Inserted by Notification No. (10)-B-1-127-99-CTD-V, dated 17-2-2000.]

Date
Opening Balance
Quantity of raw received
Whence received
Total quantity column 2 + 4
Quantity exported/ transported
(1)
(2)
(3)

(4)

(5)

(6)

Details of transport/export permit

Details of transport/export fee/duty deposited

To whom sold

Closing balance Column 5-6

Remarks

Signature

(7)

(8)

(7)

(10)

(11)

(12)

[3-B. P.S. II licensee shall enter the quantity of Poppy Straw purchased from the cultivator's in his account book same as entered in the pass book of the seller cultivator of Poppy Straw.]

[Inserted by Notification No. (36-B-1-1-2005-2-V, dated 11-10-2007]

4. The licensee shall not possess poppy-straw at any place other than the licensed premises described in Schedule I and additional godown (s) mentioned in Schedule II. For all practical purposes the licensed shop and/or additional godown (s) are bonded warehouses wherein poppy-straw, on which duty has not been paid, shall be stored.

5. [(a) The licensee shall compulsorily purchase poppy straw as estimated according to the area of opium cultivation from the farm of godowning place of the cultivators of his license area to the tune of 40% in the month of April. 30% in the month of May and rest 30% in the month of June of the total stock of poppy straw available with the cultivators. Failure to do so other P.S. II licensees of the district may be allowed to purchase such left over stock of poppy straw. From 1st July to 30th September, the licensee can purchase poppy straw from any cultivator in the district.] [[Substituted by Notification No (25)-B-1-1-05-2-V, dated 31-3-2006. In Chhattisgarh it is as under :

'5. The licensee shall procure his requirement of poppy-straw from the cultivators of the district in which his licensed premises is situated and who have been licensed under rules framed under Section 9 of the Act or from any P.S. II licensee. The State Government may, for ensuring proper price of poppy-straw to the cultivators, fix minimum purchase price for purchase of poppy straw by the licensee from the cultivators, which shall be binding on the licensee(s).]]

(b)

[Licensee shall purchase the Poppy Straw, from the opium cultivators, not below rate of Rs. 20/- (Rupees Twenty) per kilogram.]

[Substituted by Notification No, (36)-B-1-1-2005-2-V, dated 11-10-2007.]

6. [The licensee may crush or grind or powder/poppy straw in the licensed premises/additional godown (s) and may, with the permission of the licensing authority, install machines thereat for the purpose.]

[Substituted by Notification No (50)-B-1-70-99-CTD-V, dated 15-10-1999.]

7. The licensee shall sell poppy-straw only to a P.S. II or P.S. III licensee.

8. The licensee shall pay Rs. 25,000 as consideration for each additional godown permitted by the licensing authority.

9. The licensee shall obey all the instructions issued by the licensing authority.

10. [x x x]

[Omitted by Notification No. (50)-B-1-70-99-CTD-V, dated 15-10-1999.]

11. On breach of any condition of this licence or provision of the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985 or instruction issued by the licensing authority, this licence shall be liable to be cancelled. The licensing authority may accept a sum of money not exceeding Rs 5,000 by way of composition in lieu of cancellation of this licence.

Collector

I

Description of the licensed premises

Boundaries of the licensed premises

North
East
South
West

(1)
(2)
(3)
(4)
(5)

II

Description of additional godown (s) permitted

Boundaries of the licensed premises

North
East
South
West

(1)
(2)
(3)
(4)
(5)

[Form P.S. 11-A]

[Added by Notification No. (34)-B-1-58-96-CTD-V, dated 29-8-1996.]

(See Rule 37-D)

Licence for Possession and Sale by Wholesale of Powdered Poppy Straw (Known as Dhoola Pali in Local Parlance)

Under Rule 37-D of the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985 and in consideration of a fee of Rs. 5000/- (Rupees Five thousand) being the licence fee. the receipt of which is hereby acknowledged, licence is granted to resident of resident of..... Tehsil.....District.....for possession and Sale by wholesale of powered poppy straw (Known as Dhoola Pali in local parlance) obtained from the cleaning and straining of Poppy seed (Known as Posta Dana or Khas Khas in local parlance) at/from the Godown specified below from the day of 19 to 31st March 19..... subject to the following conditions :-

Conditions

1. The Licensee shall-

(1)

be bond by the Narcotic Drugs and Psychotropic Substances

(Madhya Pradesh) Rules, 1985 and the amendments made therein from time to time.

(2)

not possess or sell powdered Poppy straw obtained from the cleaning and straining operations of poppy seed in or from any place or Godown other than the following Godown/ godowns.....

(3)

not transfer this licence to any other person.

(4)

possess and stock only that powered poppy straw (Dhoola Pali) which has been obtained by him from the cleaning and straining of uncleaned poppy seed (Post a Dana or Khas Khas) purchased legally by him from the cultivators.

(5)

keep and store the stock of powdered poppy straw (Dhoola pali) obtained from the cleaning and straining of poppy seed in standard gunny bags of one quintal Each gunny bag shall contain 25 Kgs. of such powdered Poppy Straw (Dhoola Pali).

(6)

sell powered poppy straw (Dhoola Pali) only to a holder of whole-sale licence in Form P.S. II.

(7)

maintain regular, correct and true accounts of sale and purchase of powdered poppy straw (Dhoola Pali) in the following form :-

(i) Date

.....

(ii) Opening Balance

.....

(iii) the quantity of poppy seed (Posta Dana or Khas Khas) purchased from the cultivators.

.....

(iv) the quantity of powdered poppy straw

.....

(Dhoola Pali) obtained from cleaning and straining operations of poppy seed Posta Dana or Khas Khas).

.....

(v) Total Quantity (Total of ii + iv)

.....

(vi) Quantity of powdered poppy straw sold

.....

(vii) Full name and address of the P.S. II licensee to whom sold.

.....

(viii) No. and date of the transport pass

.....

(ix) Closing balance (Col. v-vi)

.....

(x) Remarks

.....

(8)

Produce on demand by an Excise Officer (not below the rank of a Sub-Inspector) for inspection, the licence, purchase and sale account and the entire stock of powdered poppy straw (Dhoola Pali).

2.

(1)

On breach of any condition of this licence or provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985) and rules made thereunder or any executive order or instructions, not inconsistent with the provisions of the said act and rules, issued from time to time, the licence shall be liable to be cancelled, in addition to any other punishment which may be imposed under the provisions of the said Act and the rules. The licensee shall also be bound by such provisions of the M.P. Krishi Upaj Mandi Adhiniyam, 1972 (No. 24 of 1973) the Madhya Pradesh Vanijyik Kar Adhiniyam, 1994 (No. 5 of 1995) as the State Government may order from time to time :

Provided that the District Excise Officer on an application made by the licensee in this behalf may accept a sum of money not exceeding Rs. 5000/- in lieu of cancellation of the licence.

Place.....

Date.....

Signature.....District Excise Officer.]

[Form P.S. III]

[Substituted by Notification No. (14)-B-1-95-98-CTV, dated 26-3-1999.]

(See Rule 37-D)

(Licence for The Retail Sale of Poppy-Straw)

Under clause (i) of Rule 37-D of the Narcotic Drugs and Psychotropic

Substances (Madhya Pradesh) Rules, 1985, this licence is granted to to sell poppy-straw in retail from his licensed premises at as described in the schedule given below from to subject to the conditions as given hereinafter. This shop has been auctioned with other shop/shops in..... group of poppy-straw licences for Rs.....

Conditions

1. [(a) The licence fee for the group of poppy straw licences shall be paid by the licensee in 12 equal monthly instalments on or before the first working day of each month, provided that keeping in view the local circumstances and with a view to ensuring full recovery of licence fee, the licensing authority may require payment of licence fee from the licensee in lesser number of instalments than twelve.

(b)

In case of default of payment under clause (a) the licensing authority, in addition to any other action under the provisions of the Act or Rules framed thereunder, may suspend or cancel the licences of the group and may resell the group at the risk of the licensee. Any loss of revenue consequent to such suspension, cancellation or resale shall be recoverable from the licensee as arrears of land revenue.]

2. The licensee shall transact his business from the licensed premises only as described in the schedule below and shall not possess poppy-straw at any other place.

3. The licensee shall not sell or receive or have in possession poppy-straw obtained otherwise than from a licensee holding licence in Form P.S. II, after payment of duty.

4. The licensee shall sell poppy-straw only to an addict holding permit in Form P.S. VII, or P.S. X or a person having permission of Excise Commissioner in accordance with sub-rule (3) of Rule 37-Q. The sales shall be limited to the quantity mentioned in such permit or permission.

5. The licensee shall not have in possession at any one time more than [50 quintals]

[Substituted for '10 quintals' by Notification No. (25) B-1-1-05-2-V, dated 31-3-2006.]

of poppy-straw.

6. The licensee shall store poppy-straw in bags each containing 40 kgs. of poppy-straw. However only one bag containing less than 40 kgs. of poppy-straw for current sale is allowed to be kept at any point of time. Storage/sale of poppy-straw in powder form is prohibited.

7. The licensee shall keep correct daily account of poppy-straw received and sold including the name of the purchaser and the authority under which it was sold in the following format.

Date

Opening Balance

Quantity received

Whence received

Details of transport permit and duty deposited

Total quantity column 2 + 3

(1)

(2)

(3)

(4)

(5)

(6)

Quantity sold

Name of the addict/person to whom sold

Details of permit or permission under which sold

closing balance column 6-7

Remarks

Signature

(7)

(8)

(9)

(10)

(11)

(12)

8. The licensee shall not permit any person to act on his behalf unless his name has been endorsed on the licence by the licensing authority.

9. The licensee shall obey all the instructions issued by the licensing authority.

10. On breach of any condition of this licence of provision of the Narcotic Drugs and Psychotropic Substances (Madhya Pradesh) Rules, 1985 or instructions issued by the licensing authority, this licence shall be liable to be cancelled. The licensing authority may accept a sum of money not exceeding Rs. 2000 by way of composition in lieu of cancellation of this licence.

Collector

Schedule 4

Description of the licensed premises

Boundaries of the licensed premises

North

East

South

West

(1)

(2)

(3)

(4)

(5)

Form P.S. IV (In Triplicate)

(See Rules 37-F and G)

Import Inter-State/export Inter-State Pass

No.....

Counterfoil : (To be retained in the office of issue)

Original : (To be forwarded to the Collector of the District of Import Inter-State/Export Inter-State)

Duplicate : (To be given to the Importer Inter-State/Exporter Inter-State)

.....resident of having a licensed shop at..... is permitted to import inter-state/export inter-state quintals of poppy straw from/to resident of..... district State to/from..... his licensed premises under the following conditions :-

The pass is current for.....days only.

The consignment shall be carried by the following route :-

Place.....

Date.....

.....District Excise Officer, Seal

Conditions

1. The poppy straw shall be securely packed and inspected and sealed by the Excise Officer, not below the rank of Sub-Inspector.

2. Bulk shall not be broken in transit.

3. The consignment shall be liable to examination by any Excise Officer, not below the rank of Sub-Inspector, in any district of Madhya Pradesh through which it may pass.

(Reverse of Form P.S. IV to be filled in by the competent authorities of Exporting Inter-State).

No. of package

Description of package

Marks of package

Weight of poppy straw

Gross weight of package

(1)

(2)

(3)

(4)

(5)

Certificate by The Authority of the Importing Inter-State

Certified that I have examined the consignment received under this pass and found that it agrees in all respects with the description in the original.

Date.....

District Excise Officer or other competent authority of the importing State.

Seal.

[Form P.S. V]

[Substituted by Notification No. (14)-B-1 -95-98-CTV, dated 26-3-1999.]

(See Rule 37-H-I)

Transport Permit (In Quadruplicate)

1st.

Part (To be retained in the office of issue)

2nd.

Part (To be handed over to the seller)

3rd.

Part (To be handed over to the consignee. It will cover the consignment during transport).

4th.

Part (To be mailed to the officer who issued the No Objection Certificate)

Shri holding a licence in Form P.S. II/P.S. III in..... district is permitted to transport..... quintals of poppy-straw from Shri..... cultivator of.....village (licensed to grow opium)/P.S. II/P.S. II-A licensee of this district on a payment of Rs..... challen No. Date as duty/transport fee. This permit shall be valid upto..... The consignment shall be transported direct to his licensed premises.

District Excise Officer, M.P]

[Form P.S. V]

[Inserted by Notification No. (14)-B-1 -95-98-CTV, dated 26-3-1999.]

(See Rule 37-H-6)

No Objection Certificate

No.....

.....

1st. Part (To be retained in the office of issue)

2nd. Part (To be handed over to the purchasing licensee)

3rd. Part (To be mailed to the officer who issued the transport permit)

To,

The District Excise Officer,

.....(M.P.)

Shri holder of a licence in Form P.S. II/P.S. III in this district intends to transport quintals of poppy-straw from P.S. II licensee of your district. This office has no objection if a transport permit for the above mentioned quantity is issued by you. This no objection Certificate shall be valid upto.....

District Excise Officer M.P]

Form P.S. VI

[See Rule 37-0 (1)]

Application for The Possession of Poppy Straw for Personal Consumption

To,

The District Excise Officer,

.....

Sir,

I (Name in full with Father's/Husband's name) age resident of..... (address in full) occupation (if any)....request that a permit for the possession of poppy straw for my bonafide personal consumption may be granted/renewed for the financial year ending 31st March 19.....

2. I deposit a sum of Rs. 12 as the fee for the issue of permit.

3. I require (Kg. poppy straw per month for my bona fide personal consumption as I am an poppy straw addict.

4. I am in possession of a Ration Card No.....for.....Kgs./I am not in possession of a Ration Card.

5. I undertake to take such treatment for weaning me away from poppy straw addiction as may be prescribed by the Medical Officer.

6. I shall not transfer the registration certificate to any body else.

Place :

Date :

.....Signature of the applicant

Form P.S. VII

[See Rule 37-O (2)]

Permit No.

Permit for The Possession of Poppy Straw for Personal Consumption in the District.....of Madhya Pradesh

(A)(1) Permit holder's name

.....

(2) Father's name/Husband's name

.....

(3) Address in full

.....

(4) Occupation

.....

(B) Purpose for which the permit is (for personal consumption) granted

.....

(C) Reference to Medical Certificate-

(1) Name and address of the Medical Officer who granted the certificate.

.....

(2) Date of certificate

.....

(3) Quantity of poppy straw recommended per month

.....

(4) Personal identification Marks of the permit-holder as verified by the Medical Officer

1.....2.....3.....

The permit is granted under and subject to the provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985) and the rules made thereunder to..... of..... (hereinafter referred to as "the permit-holder") on payment of a fee of Rs..... authorising him/her to possess and transport poppy straw subject to the following conditions :-

Conditions

1. This permit shall remain in force from to.....(both days inclusive).

2. The permit-holder shall as soon as possible present this permit before the Excise Officer concerned of the Excise Department for his counter-signature and in any case not later than one month from the receipt of this permit.

3.

(1)

The permit-holder shall not obtain during any one month poppy straw exceeding Kg. provided this quantity may be reduced during the period of permit according to the orders of the Excise Commissioner.

(2)

The permit-holder shall not possess at any one time more than kgs. of poppy straw.

4.

(1)

The permit-holder shall not obtain his/her supplies of poppy straw from any place except from the depot, established under the Narcotic Drugs and Psychotropic substances (Madhya Pradesh) Rules, 1985.

(2)

The permit-holder shall get the details of the purchase entered on the reverse of the permit by the officer-in-charge of the depot, before he/she removes from the depot the poppy straw purchased by him/her.

(3)

No poppy straw other than poppy straw obtained under this permit shall be transferred or possessed by the permit-holder.

5. The poppy straw obtaining under this permit shall neither be used by any person other than the permit-holder nor shall it be used for any purpose other than the purpose for which this permit is granted.

6. The privileges of transport and possession of poppy straw granted under this permit shall extend only so far as they are incidental to its consumption in accordance with this permit.

7. Their permit shall be non-transferable and may be cancelled at any time by the officer granting, -

(a)

for non-payment of any fee payable by the permit-holder;

(b)

for default or violation by the permit-holder of any conditions specified in the permit;

(c)

if the holder thereof be convicted of any offence against law relating to Excise, Revenue, Liquor, Poppy-straw or intoxicating drugs;

(d)

If the permit-holder infringes any of the provisions of the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61 of 1985) or of the rules made thereunder;

(e)

if the purposes for which the permit was granted cease to exist.

8. In case the permit is surrendered or cancelled during its period or is not renewed on its expiry, the whole of the unconsumed stock of poppy straw shall forthwith be surrendered, to the Licensee holding licences in Form P.S. II or officer granting the permit as may be ordered by the Licensing Authority.

Granted this.....day of..... 19....

Signature or the left hand thumb impression of the permit-holder

Signature and designation of the authority granting the permit

Countersigned

Excise Officer of The Excise Department

(Reverse of the Permit)

Details of Purchase of Poppy Straw Made by

The Permit-Holder From.....To.....

Date

Total quantity of poppy straw permitted to be purchased in the current month

Quantity of poppy straw purchased

Running total of quantity of poppy straw

purchased since the first of the current month

Difference between the quantity allowed in the current month and the running total (Col. 4)

Signature of the Officer-in-charge of the depot and the name of the depot.

(1)

(2)

(3)

(4)

(5)

(6)

Form P.S. VIII

[See Rule 37-O (2) (a)]

Certificate From the Medical Officer or Medical Board Recommending the Grant of A Permit to the Applicant to Possess Poppy Straw for Personal Consumption.

This is to certify that the applicant Shri/Shrimati/Kumari (full name), who is by his/her statement, aged..... years and is apparently about..... years of age residing at..... (full address) has by his/her statement and on examination been found to be habituated to consume poppy straw.

The applicant states that he/she is suffering from and on examination is found to be suffering from..... (description of disease) there is no trace of any incurable or painful disease.

The Medical Officer/the Medical board is of the opinion that the said Shri/Shrimati/Kumari requires poppy straw for his/her personal consumption as medical necessity and recommends that he/she may be permitted to consume poppy straw in a quantity not exceeding..... Kgs. per month for a period of.....months subject to the condition that a cut of..... Kgs. (1.8 of the total quantity recommended) in the said quantity shall be effected every quarter.

2. The personal identification marks of the above named Shri/Shrimati/Kumari.....as verified are :-

(1)

.....

(2)

.....

(3)

.....

The photograph of the above named Shri/Shrimati/Kumari.....has been verified and found to represent him/her a declaration to this effect has been signed on the reverse of the photograph. Station (with address)

(1)

.....

(2)

.....

Signature of the Medical Officer, or

Signature with designation of the members of the Medical Board for the District of.....

Foot Note :-

(1)

This certificate can only be given by a Medical Officer or Medical Board appointed for the area in which the applicant is residing and desires to obtain the poppy straw'.

(2)

No certificate should be granted to a minor.

(3)

In case of any dissent, the dissenting member may record his remarks in a note below the certificate.

Form P.S. IX

[See Rule 37-P (v)]

Record of Medical Examination

1. Name and address of the examinee

.....

2. Age

.....

3. Sex

.....

4. Weight

.....

5. Blood pressure

.....

6 (a) General Physical examination

.....

(b) (1)

Evidence, if any, to show that the examinee is habituated to

consume poppy straw.

.....
(2) Evidence

for loss of weight, if any

.....
(3) Presence

of any disease for which examinee is required to use or consume
poppy straw. (Please state the name of the disease and also
whether it is incurable or painful disease)

.....
7. Period for which the applicant is habituated to consume
poppy straw

.....
8. Quantity of poppy straw by the examinee's personal medical
advisor and reasons given by him for such recommendations.

.....
9. Quantity of poppy straw recommended per mensem by the
Medical Officer or the Medical Board and also its reasons for
recommending or refusing the use or consumption of poppy straw by
the examinee

.....
10. Any other remarks

.....
Signature of the Medical Officer or

Signature(s) with designation(s) of the Members of Medical board for the area of.....

Form P.S. X

[See second proviso to Rule 37-P (vii)]

Temporary Permit

Temporary permit for the possession of poppy straw for personal consumption in the District.....Madhya Pradesh

(A) (1) Permit-holder's name

.....
(2) Father's/Husband's name

.....
(3) Apparent age

.....
(4) Address in full

.....
(5) Occupation

.....
(B) Purpose for which the permit is granted for personal
consumption

.....
(C) Reference to Medical Certificate-

(1) Name and address of the Medical officer who granted the
certificate

.....
(2) Date of certificate, etc.

.....
(3) Quantity of P'5PPY straw recommended per month

.....
(4) Personal identification marks of the permit-holder as

verified by the Medical Officer

.....
(5) Application for permanent permit alongwith medical
certificate granted under (1) above referred to Medical Board
under clause (vii) of Rule 37-Pvideletter No.
dated

.....
(D) Quantity permitted to the permit-holder from to This
temporary permit is granted under and subject to the provisions of
the Narcotic Drugs and Psychotropic Substances Act, 1985 (No. 61
of 1985) and the rules made thereunder to
Shri/Smt./Kumari..... (hereinafter referred to as "the
permit-holder"), on payment of a fee of Rs.
authorising him,/her to possess and transport poppy straw subject
to the conditions attached to permanent permit in Form P.S. VII.

.....
Granted this.....day of 19.....

Signature or the left hand thumb impression of the permit-holder Signature and designationof the authority granting the
permit

Countersigned

Concerned Excise Officer of the Excise Department

Place.....

Date.....

[Form M-1]

[Form M-1 to Form M-5, Inserted by Notification No. (37)-B-1-73-99-CTD-V, dated 14-5-1999.]

[See Rule 47-C (i)]

1. Name of the institution and Address.

2. Name of the Head/in-charge of the Institution.

3. No. of persons employed :

(i)

Doctors

(ii)

Nursing Staff

(iii)

Others.

4. No. of patients treated during the previous calendar year :-

(i)

in-patient

(ii)

out-patient

5. Whether the hospital has facilities to treat cancer patients. Yes/No

6. No. of cancer patients treating during previous calendar year

(i)

in-patient

(ii)

out-patient

7. Name of the qualified medical practitioner who would prescribe morphine (If there are more than one qualified medical
practitioner who would prescribe morphine. Indicate the name of the medical practitioner who would be overall
incharge).

8. Whether the institution's recognition for the purpose was withdrawn earlier (if the recognitions was withdrawn earlier
the details are to be given).

Yes/No

.....

Station.....

Date.....

Signature of the Head/Incharge of the institution with name.

[Form M-2]

[See Rule 47-D (ii)]

Record of Receipt, Disbursement and Balance of Morphine

Date.....

Quantity in hand at the beginning of the day

Details of quantity received

Details of quantity disbursed

S. No.

Quantity

From whom received

Consignment note/bill or entry No.

S. No.

Quantity

Name of the person and address to whom disbursed

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Name of the medical practitioner who prescribed

Quantity in hand at the close of the day

(9)

(10)

.....

Signature

Note. - 1. This record is to be maintained on day to day basis and entries shall be made for each day the institution functions. Entries shall be completed for each day before the close of the day. The authorised medical practitioner/in-charge or any person authorised by them shall initial after entry of each day with date. The pages of the register shall contain necessary number.

2. This record shall be retained for two years from the date of last entry.

3. This record shall be produced to the authorised officers whenever called upon during the course of their inspection.

Form M-3

[See Rule 47-E]

Estimate of Annual Requirement

1. Name and address of the recognised medical institution.....

2. Period for which the estimate is submitted.....

3. Quantity disbursed during the previous year.....

4. Quantity estimated to be disbursed during the year for which estimate is submitted.....

5. Supplier who would supply the quantity.....

S.No.

Name and address of the supplier

Quantity

(1)

(2)

(3)

6. If this is a supplementary requirement, give details of annual requirement sent earlier and the reasons for giving a supplementary requirement.

Station

Date.....

.....(Signature of the authorised medical practitioner/in-charge with name).

Form M-4

[See Rule 47-H (a)]

Orders For Purchase

To,

.....

(Name and address of the supplier)

1. Name and address of the recognised medical institution which places the order.

2. Description of the quantity for which order is placed.

3. Whether the institution has been recognised by the Drug Controller (A Photocopy of the recognition is to accompany each order for purchase).

4. Whether this order is covered by the estimate approved by the Drug Controller (A Photocopy of the approved estimate is to accompany each order of purchase).

5. Details of other orders for purchase made during the year :-

S. No.

Quantity

To whom order was placed

(1)

(2)

(3)

Station.....

Date.....

.....(Signature of the person authorised to place order with name and designation if any)

Note.-1. A copy of this order shall be kept by the recognised medical institution which places the order.

2. This shall be retained for two years from the date of transaction.

Form M-5

[See Rule 47-H (b)]

Consignment Note

No.....

(To accompany a consignment of morphine)

Date and time of despatch of the consignment.....

1. Name and address of consignor.....

2. Name and address of the consignee Le. recognised medical institution.....

3. Description and quantity of the consignment.....

No. of Packages

Quantity

Gross.

Net

(1)

(2)

(3)

4. Mode of transport (Particulars of the transporter, Registration number of the vehicle, RR, if the transport is by Railway etc.).

Signature of the Consignor with date (Name and designation, if any)

To be filled by the Consignee :-

5. Date and time of receipt by the consignee and his remarks,

6. Quantity received by the consignee,-

No. of Packages

Quantity

Gross.

Net

(1)

(2)

(3)

Signature of the Consignor with date (Name and designation, if any)

Note.-1. This consignment note shall be serially numbered on annual basis.

2. The consignor should record a certificate on the cover page of each book containing consignment notes indicating the number of pages contained in the consignment note-book.

3. The consignor should maintain a Register showing the details of the book of consignment note brought in use during particular year.

4. Each consignment of morphine shall be accompanied by this consignment note in quintuplicate (i.e. five).

5. This consignment note shall be retained for a period of two years from the date of transaction.

6. The records referred to at items 2 to 5 above in this note shall be produced to the authorised officers whenever called upon during the course of their inspection.

[Substituted by Notification No. B-1-71-99-CTD-V, dated 21-10-1999.]

[Substituted by Notification No. 8-1-71-99-CTD-V, dated 21-10-1999.]

Related AI tags, queries and research notes

Translation